

Constitutional Foundations and Limits of Congressional Authority to Regulate Executive Branch Ethics

IV. Constitutional Framework

A. Constitutional Allocation of Authority Between Congress and the President

The Constitution does not expressly assign responsibility for regulating the ethical conduct of executive branch officials to either Congress or the President. Instead, federal ethics law occupies an area in which legislative authority under Article I and executive authority under Article II intersect. Determining the constitutional limits of congressional regulation therefore requires examining the structural allocation of governmental powers established by the Constitution rather than identifying any single clause that expressly authorizes or prohibits ethics legislation.

Unlike many constitutional disputes that turn upon the interpretation of a discrete textual provision, controversies concerning executive branch ethics arise from the interaction of several constitutional powers. Congress relies principally upon its legislative authority under Article I, including the Necessary and Proper Clause, its authority to establish offices, its appropriations power, and its responsibility to enact laws governing the administration of the federal government. The Executive, by contrast, relies upon Article II's Vesting Clause, the Take Care Clause, the Appointments Clause, and the President's responsibility to supervise officers charged with executing federal law. The resulting constitutional question is therefore one of institutional competence: to what extent may Congress prescribe standards governing executive officials without assuming powers constitutionally committed to the President?

The Supreme Court has consistently approached separation-of-powers disputes through this structural lens. Although the Court has employed varying methodologies over time—sometimes emphasizing formal constitutional boundaries and at other times adopting a more functional balancing approach—it has repeatedly recognized that “[t]he Constitution sought to divide the delegated powers of the new Federal Government into three defined categories, Legislative, Executive, and Judicial.” The purpose of that division is not merely administrative convenience but the preservation of political liberty through the diffusion of governmental authority. Consequently, legislation regulating executive officials must be evaluated not only according to Congress's affirmative legislative powers but also according to whether it impermissibly encroaches upon powers constitutionally vested in the Executive.

This structural principle has particular significance in the field of governmental ethics. Ethical obligations frequently regulate the manner in which executive officials perform their duties rather than the substantive decisions they make. Financial disclosure requirements,

conflict-of-interest prohibitions, recusal obligations, restrictions on outside employment, and post-employment limitations all establish legal conditions governing public service without necessarily dictating the exercise of executive discretion. At the same time, ethics legislation may become constitutionally problematic if it attempts to supervise executive decision-making directly, alter the President's constitutional relationship with subordinate officers, or vest executive enforcement authority in officials who are insufficiently accountable to presidential control.

Accordingly, constitutional analysis must distinguish between regulation of official conduct and control of executive power. Congress ordinarily possesses broad authority to enact the former. The latter, however, implicates Article II's allocation of executive authority and therefore requires considerably greater constitutional scrutiny.

B. Article I Sources of Congressional Authority

Congress's authority to regulate executive branch ethics rests upon several complementary constitutional powers rather than upon any single enumerated provision. Although the Constitution nowhere expressly authorizes Congress to enact ethics legislation, the Supreme Court has long recognized that Congress possesses broad authority to structure the institutions through which the federal government carries out its constitutional responsibilities. Ethics statutes are generally understood as exercises of this structural legislative authority.

1. The Legislative Power

Article I, Section 1 vests "[a]ll legislative Powers herein granted" in Congress. Standing alone, this provision confers no substantive regulatory authority. Rather, Congress must identify an enumerated power supporting any legislation it enacts. Ethics legislation derives its constitutional foundation from several such powers acting together, including Congress's authority to establish executive departments, regulate federal expenditures, prescribe duties for statutory offices, and enact laws necessary and proper to carry federal powers into execution.

Historically, Congress has exercised this authority from the earliest years of the Republic. The First Congress enacted statutes governing executive administration, established departmental responsibilities, imposed duties upon federal officers, prescribed oaths of office, prohibited certain financial conflicts, and created mechanisms of governmental accountability. Although these enactments were not described in modern terminology as "ethics laws," they reflected an early understanding that Congress possessed authority to regulate the legal obligations accompanying federal office.

This historical practice has assumed increasing significance in modern separation-of-powers jurisprudence. The Supreme Court has repeatedly regarded longstanding governmental practice as persuasive evidence of constitutional meaning, particularly where the political branches have

acquiesced in a particular institutional arrangement over an extended period. Consequently, the uninterrupted history of congressional regulation of executive conduct provides important contextual support for Congress's constitutional authority to enact generally applicable ethics statutes.

2. The Necessary and Proper Clause

The principal constitutional foundation for congressional ethics legislation is the Necessary and Proper Clause, Article I, Section 8, Clause 18, which authorizes Congress "[t]o make all Laws which shall be necessary and proper for carrying into Execution" both its enumerated powers and "all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof."

From the early Republic, the Supreme Court has interpreted the Necessary and Proper Clause as conferring substantial discretion upon Congress in selecting appropriate means of implementing constitutional powers. In *McCulloch v. Maryland*, Chief Justice Marshall explained that the Clause permits Congress to choose any means that are "appropriate" and "plainly adapted" to legitimate constitutional ends, provided those means are not prohibited by the Constitution and remain consistent with its letter and spirit. That interpretation has remained the cornerstone of congressional authority to organize the federal government.

Executive ethics legislation comfortably fits within this framework. Congress possesses unquestioned authority to establish executive offices, appropriate funds for their operation, define statutory responsibilities, and create mechanisms for administering federal law. Ethical obligations governing those offices—including financial disclosure requirements, conflict-of-interest restrictions, recusal obligations, limitations on outside employment, and reporting requirements—may reasonably be viewed as measures "plainly adapted" to ensuring the faithful administration of federal programs and protecting the integrity of governmental decision-making.

The Necessary and Proper Clause, however, is not an independent source of unlimited legislative authority. As the Supreme Court has repeatedly emphasized, legislation enacted pursuant to the Clause must remain "proper" as well as "necessary." A law that substantially interferes with powers assigned by the Constitution to another branch may therefore exceed Congress's authority even if it serves otherwise legitimate governmental objectives. In the context of executive ethics, this limitation becomes particularly important because the same legislation that promotes governmental integrity may also affect presidential supervision of executive officials. The constitutional inquiry consequently requires consideration of both Article I's affirmative grant of legislative authority and Article II's reservation of executive power.

Congress's authority over executive ethics also derives from Article I, Section 9, Clause 7, which provides that "[n]o Money shall be drawn from the Treasury, but in Consequence of

Appropriations made by Law." The Appropriations Clause gives Congress substantial control over the resources available to the Executive Branch and therefore supplies an important institutional mechanism through which Congress may establish conditions governing federal administration.

The Clause does not itself constitute a general police power over the Executive. Rather, it operates in conjunction with Congress's legislative powers. Congress may determine whether and for what purposes federal funds are made available, and it may establish statutory conditions governing their expenditure. This authority has obvious relevance to ethics administration because Congress routinely funds executive departments, ethics offices, inspectors general, personnel systems, and disclosure and oversight mechanisms.

The constitutional distinction, however, is between **control over federal expenditures** and **control over executive functions**. Congress may refuse to appropriate money for an activity, or prescribe lawful conditions governing the expenditure of appropriated funds, without thereby acquiring authority to administer the Executive Branch itself. The fact that Congress controls the purse does not mean that Congress may use appropriations legislation to exercise powers the Constitution assigns to the President.

That limitation follows from the broader separation-of-powers principle. The Supreme Court has repeatedly rejected attempts by Congress to retain direct control over the execution of laws after enactment. The Appropriations Clause therefore cannot be treated as an independent source of authority for congressional administration of executive ethics. Rather, appropriations restrictions must remain connected to a legitimate legislative purpose and must not become a mechanism through which Congress assumes executive power.

The distinction is particularly important where Congress conditions appropriations on compliance with ethics requirements. A statute providing that federal funds may be used only if an agency maintains appropriate financial-disclosure systems or complies with statutory reporting obligations is materially different from a statute authorizing Congress to determine individual executive personnel decisions or direct the disposition of particular enforcement matters.

The former regulates the conditions under which public funds may be spent. The latter would more directly implicate Article II's allocation of executive power.

Accordingly, the Appropriations Clause strengthens Congress's practical ability to establish and maintain executive ethics systems, but it does not eliminate the independent constitutional limitations imposed by Article II.

Congress's authority to establish executive offices provides perhaps the most direct constitutional foundation for federal ethics regulation.

The Constitution does not itself establish the modern Cabinet departments, most executive agencies, or the vast majority of federal administrative positions. Those institutions exist because Congress created them through legislation. Article I therefore gives Congress substantial responsibility for determining the institutional architecture through which federal law is executed.

That authority is closely related to the Necessary and Proper Clause. Congress may establish offices, prescribe their statutory duties, determine their compensation, establish qualifications, and create administrative procedures governing their operations. The Supreme Court's separation-of-powers jurisprudence recognizes that Congress necessarily possesses substantial discretion to structure the federal government, subject to constitutional limitations arising elsewhere in the Constitution.

Ethics requirements naturally fit within this authority.

Congress may define the legal obligations associated with federal office. Those obligations can include restrictions on:

- financial conflicts of interest;
- outside employment;
- gifts and benefits;
- representation of private parties before the government;
- misuse of official information;
- post-government employment;
- financial disclosure;
- participation in particular matters involving personal financial interests.

These requirements do not necessarily alter the substantive allocation of executive power. Instead, they establish the legal conditions under which a person exercises authority that Congress has created by statute.

This distinction is constitutionally important. An executive officer has no inherent entitlement to exercise statutory authority free from conditions Congress has lawfully attached to the office. Congress may define the office's duties and the legal rules applicable to its exercise, while the President retains authority to supervise the officer's execution of those duties.

The two powers are therefore complementary rather than mutually exclusive.

Congress determines, within constitutional limits, **what legal framework governs the office**. The President determines, within that framework, **how executive authority is administered and exercised**.

This distinction is consistent with the Supreme Court's treatment of congressional regulation of executive officers. Even decisions strongly protective of presidential control have not suggested that Congress is constitutionally prohibited from establishing legal obligations governing executive officials. The modern Article II cases instead focus heavily on whether Congress has interfered with the President's ability to supervise officers who exercise executive authority.

That distinction becomes particularly significant when considering the enforcement of ethics requirements. Congress's authority to establish a rule does not necessarily imply authority to place its enforcement beyond presidential control. A statutory requirement that an executive official disclose financial interests is one thing; a statutory scheme under which a congressional entity possesses continuing authority to determine whether that official remains in office is another.

The first regulates the conditions of executive service. The second potentially transfers executive authority to Congress.

C. Congressional Investigatory and Oversight Authority

Although the Constitution does not contain an express "oversight clause," congressional investigation is a longstanding incident of legislative power. Congress cannot effectively legislate without obtaining information concerning the operation of federal programs, the implementation of statutes, and the conduct of federal officers.

The Supreme Court has recognized that congressional investigative authority extends to inquiries concerning matters on which Congress may legislate or conduct other constitutionally authorized functions. The authority is not unlimited: Congress may not investigate solely for purposes unrelated to a legitimate legislative function, nor may it use an investigation as a substitute for judicial or executive power.

Executive ethics falls comfortably within the ordinary sphere of legitimate congressional inquiry. Congress has constitutional authority to legislate concerning federal administration, appropriations, governmental organization, public expenditures, and the conditions under which statutory authority is exercised. Information concerning corruption, conflicts of interest, financial misconduct, or other ethical failures can therefore inform legislation within Congress's competence.

The constitutional difficulty arises when oversight moves from **investigation** to **execution**.

Congress may investigate whether an executive official violated an ethics statute. It may request documents, conduct hearings, subpoena information where constitutionally authorized, enact corrective legislation, and use its appropriations authority. But Congress cannot itself assume the

executive function of prosecuting or administratively adjudicating violations merely because the investigation concerns legislation within Congress's jurisdiction.

This distinction is reflected in the Supreme Court's separation-of-powers cases concerning congressional control of executive functions. Congress possesses substantial information-gathering authority, but it cannot retain for itself the power to execute the laws it has enacted.

The same principle should govern ethics oversight.

A congressional committee may investigate whether an executive agency's ethics program is functioning properly. It may determine whether existing statutory standards are adequate. It may demand information necessary to conduct legislative oversight. It may legislate in response to its findings.

It may not, however, convert the oversight process into a continuing congressional supervisory relationship over executive officers.

V. Article II Constraints on Congressional Regulation

A. The Executive Vesting Clause

Article II, Section 1, Clause 1 provides:

"The executive Power shall be vested in a President of the United States of America."

The Vesting Clause is the constitutional foundation for the President's authority over the Executive Branch. Its precise meaning has generated substantial disagreement among constitutional scholars, particularly concerning whether it confers a broad "residual" executive power beyond the powers expressly enumerated elsewhere in Article II.

The Supreme Court, however, has repeatedly treated the President's constitutional position as materially different from that of ordinary executive officers.

The President is not simply the highest-ranking federal employee. Article II establishes the Presidency as an independent constitutional institution and assigns the President responsibility for execution of federal law. That structural position places limits on congressional regulation that do not apply with equal force to career civil servants or other statutory employees.

The Vesting Clause therefore creates an important outer boundary for ethics legislation.

Congress may regulate the conditions under which executive officers exercise statutory authority. But it cannot use its legislative authority to transfer the executive power itself to Congress or to an entity controlled by Congress.

The distinction can be expressed relatively simply:

Congress may establish the rules governing executive administration; it may not become the administrator.

This principle is especially important when evaluating ethics enforcement mechanisms. Congress may determine that certain conduct is unlawful and may establish executive procedures for investigating and remedying violations. But Congress cannot reserve to itself the final executive decision whether an individual officer should be investigated, disciplined, or removed if doing so would amount to the exercise of executive power.

B. The Take Care Clause

Article II, Section 3 provides that the President "shall take Care that the Laws be faithfully executed."

The Take Care Clause is simultaneously a source of presidential responsibility and a structural limitation on congressional interference.

The Clause assumes that federal law will be executed through an executive hierarchy ultimately accountable to the President. The President cannot discharge the constitutional obligation to ensure faithful execution if Congress has displaced presidential supervision with its own continuing direction of executive officials.

This principle is particularly important in the context of ethics regulation because Congress is capable of writing ethics rules with very different institutional consequences.

Consider two hypothetical statutory provisions:

Rule A: "An officer may not participate personally and substantially in a particular matter in which the officer has a conflicting financial interest."

and:

Rule B: "The Ethics Committee of Congress shall determine whether an executive officer may participate in a particular executive matter."

The first provision establishes a substantive legal standard. It tells the executive officer what the law permits and prohibits. The President remains responsible for ensuring that executive officials comply with the law.

The second provision gives Congress an operational role in administering executive authority. Depending upon its precise structure, it could raise serious Article II concerns because Congress would be determining how an executive officer exercises executive power.

The Take Care Clause thus reinforces the distinction between **legislative standards** and **executive administration**.

C. Presidential Supervision of Executive Officers

The Supreme Court's removal cases provide the clearest expression of the principle that presidential control over executive officers is constitutionally significant.

Myers treated presidential removal authority as an important component of executive supervision. *Humphrey's Executor* subsequently recognized a limited category of officers who could receive statutory removal protections. *Morrison* upheld a further restriction involving an inferior officer. The modern Court's decisions in *Free Enterprise Fund*, *Seila Law*, and *Collins* have nevertheless strengthened the constitutional presumption favoring presidential control.

The modern cases are important to ethics regulation even though they do not establish a general constitutional right of the President to disregard ethics laws.

Their principal implication is structural:

Congress cannot ordinarily use ethics legislation to create an executive official who is insulated from the President merely because the official's responsibilities involve ethics.

This point is especially significant for any proposed independent ethics authority. The constitutional question would not simply be whether the authority performs an important governmental function. It would also be whether the authority exercises executive power and, if so, whether the President retains constitutionally sufficient control over the person exercising it.

The distinction between **ethical standards** and **ethics enforcement** is therefore fundamental.

Congress's authority to prescribe a conflict-of-interest rule does not necessarily entail authority to create an independent enforcement official with unrestricted power to investigate, adjudicate, and discipline executive officers.

D. The Appointments Clause

The Appointments Clause provides another important structural constraint.

Article II, Section 2, Clause 2 provides that the President:

"shall nominate, and by and with the Advice and Consent of the Senate, shall appoint Ambassadors, other public Ministers and Consuls, Judges of the supreme Court, and all other Officers of the United States."

Congress may vest appointment of inferior officers in the President alone, courts, or heads of departments, but the constitutional structure does not ordinarily permit Congress itself to appoint executive officers.

The distinction matters for ethics regulation because Congress might otherwise attempt to establish an ethics officer or oversight official who is selected directly by Congress and empowered to supervise executive officials.

Such an arrangement would implicate more than ordinary separation-of-powers concerns. It could raise a direct Appointments Clause problem if the individual exercises significant federal authority.

The Supreme Court's Appointments Clause cases establish that the constitutional status of an official depends in substantial part on whether the individual exercises "significant authority pursuant to the laws of the United States." The more substantial the authority exercised by an ethics official, the stronger the argument that the individual occupies an "Office of the United States" rather than merely performing an employee-level function.

Congress therefore has considerable latitude to establish ethics offices within the Executive Branch, but the officials exercising significant statutory authority must be appointed in accordance with Article II.

This principle also reinforces a broader point: Congress's authority to **create** an office does not include unrestricted authority to **control** the person occupying it.

E. The Opinions Clause and Presidential Supervision

Article II, Section 2, Clause 1 provides that the President "may require the Opinion, in writing, of the principal Officer in each of the executive Departments, upon any Subject relating to the Duties of their respective Offices."

Although rarely invoked as an independent basis for resolving modern separation-of-powers disputes, the Opinions Clause provides important textual evidence concerning the Constitution's conception of presidential supervision.

The Clause expressly contemplates a relationship in which principal executive officers report to the President concerning the duties of their offices. It therefore reinforces the constitutional conception of executive departments as components of an administration ultimately headed by the President.

Congress may prescribe the duties about which those officers must provide information. It may require reports to Congress as part of legislative oversight. But it cannot transform those officers into agents of congressional administration at the expense of their constitutionally prescribed relationship with the President.

The Opinions Clause consequently provides additional textual support for the proposition that congressional ethics regulation should preserve a chain of executive accountability running from subordinate officers to the President.

VI. The Constitutional Line: Regulation Versus Control

The foregoing provisions establish the central constitutional distinction governing this memorandum.

Congress possesses legitimate constitutional authority to establish **rules of conduct** for executive officials. Article I permits Congress to establish offices and prescribe their statutory duties; the Necessary and Proper Clause permits Congress to enact appropriate means of carrying federal powers into execution; the Appropriations Clause gives Congress substantial control over federal resources; and congressional investigative authority permits legislative inquiry into executive administration.

Article II nevertheless reserves the execution of federal law to the Executive and places the President at the head of that constitutional structure.

The resulting rule is not that Congress may regulate ethics only where the President consents. Nor is it that every ethics statute is presumptively suspect because it affects executive officers.

The better statement of existing doctrine is narrower:

Congress may establish substantive ethical obligations governing executive officials, but it may not use those obligations as a vehicle for exercising executive power, displacing presidential supervision, or materially impairing constitutionally protected presidential functions.

That distinction provides the analytical bridge between congressional ethics legislation and the Supreme Court's separation-of-powers jurisprudence.

It also explains why the constitutional analysis must differentiate among the President, principal officers, inferior officers, and ordinary federal employees. The further an individual is removed from the President's constitutional office and the less independent executive authority the individual exercises, the greater Congress's structural latitude ordinarily becomes.

Conversely, legislation directed specifically at the President or at officials exercising significant executive authority under presidential supervision presents more difficult Article II questions.

The next sections of the memorandum therefore turn to the constitutional status of these different categories of executive officials before examining the Supreme Court's modern separation-of-powers cases in detail.

C. Constitutional Status of Different Executive Officials

The constitutional limits on congressional ethics regulation cannot be stated entirely in the abstract. The President, Vice President, Cabinet secretaries, other principal officers, inferior officers, and ordinary federal employees occupy materially different positions within the constitutional structure. Congress consequently does not possess identical regulatory authority with respect to each category.

The most important distinction is between **constitutional status** and **statutory status**. An individual may be subject to an ethics statute because Congress created the office or employment relationship, while simultaneously exercising authority that is constitutionally protected from congressional interference. Conversely, an employee may perform important governmental functions without possessing independent constitutional authority sufficient to trigger the strongest Article II protections.

1. The President

The President presents the most constitutionally sensitive case.

Article II does not establish the President as merely the head of an administrative hierarchy created by Congress. It creates an independent constitutional office, vests the executive power in the President, establishes the President's relationship to subordinate officers, and assigns the President specific constitutional responsibilities. The President's unique status consequently places substantial limits on Congress's ability to regulate presidential conduct.

This does **not**, however, establish a general presidential exemption from federal law. The Supreme Court has repeatedly rejected the proposition that the President is categorically above legal constraint. In *United States v. Nixon*, the Court rejected an absolute presidential privilege against judicial process. In *Clinton v. Jones*, it held that the President was not immune from litigation concerning unofficial conduct. More recently, *Trump v. United States* distinguished

between official and unofficial presidential conduct and held that a former President possesses absolute immunity from criminal prosecution for conduct within the President's exclusive constitutional authority and at least presumptive immunity for other official acts.

The significance of *Trump* for ethics regulation requires careful qualification. The case addressed **criminal prosecution of a former President**, not Congress's authority to establish prospective ethical obligations. Its holding therefore does not establish that Congress may not regulate presidential conduct through statutes of general applicability. It does, however, reinforce the proposition that some presidential conduct lies within a constitutionally protected sphere that ordinary legislation cannot eliminate.

The Court's formulation is particularly relevant to the distinction between ethics and presidential decision-making. The President may not be prosecuted for exercising core constitutional powers, and official acts receive at least presumptive immunity. A statute purporting to regulate presidential ethics therefore cannot be evaluated solely by asking whether the regulated conduct is ethically desirable. The more important question is whether enforcement of the statute would intrude upon a constitutionally assigned presidential function.

Congress's authority is consequently strongest when it regulates matters that are:

- generally applicable to federal officials;
- ancillary to the administration of federal programs;
- directed toward preventing personal financial conflicts;
- concerned with disclosure and transparency;
- capable of application without directing the President's exercise of a constitutional power.

It is weakest where an ethics provision would purport to:

- dictate how the President exercises an exclusive constitutional power;
- subject the President's core constitutional decisions to executive enforcement by another officer;
- transfer presidential supervisory authority to Congress;
- impose a statutory removal mechanism on the President;
- authorize another branch to determine whether the President may perform a constitutionally assigned function.

The constitutional question is therefore not whether the President can ever be subject to ethics-related law. It is whether a particular regulation can operate without materially interfering with the constitutional functions of the Presidency.

That distinction should remain central throughout the analysis.

2. The Vice President

The Vice President occupies an unusual constitutional position that cannot be reduced entirely to either the legislative or executive branch.

Article II establishes the Vice Presidency as part of the presidential electoral structure, while Article I, Section 3 makes the Vice President of the Senate and assigns the office a constitutionally specified role in Senate proceedings.

The Vice President therefore possesses both executive and legislative constitutional characteristics.

For ethics regulation, this creates a more complicated question than with ordinary executive officials. Congress plainly possesses substantial authority to regulate the Vice President's administrative and statutory responsibilities. Yet congressional regulation cannot eliminate or substantially impair the Vice President's constitutionally assigned functions.

The constitutional distinction is consequently between:

1. the Vice President's **constitutional functions**, which Congress cannot simply redefine through ordinary legislation; and
2. the Vice President's **administrative or executive functions**, over which Congress has greater regulatory authority.

The distinction is especially important because ethics obligations can potentially affect both categories simultaneously. A disclosure or conflict-of-interest requirement applicable to the Vice President as an executive official is analytically different from a statutory restriction that directly governs the Vice President's participation in Senate proceedings.

The Vice President's unique status also complicates the application of presidential-supervision doctrine. Unlike a Cabinet secretary, the Vice President does not occupy an ordinary statutory office created by Congress. The Vice President's office derives directly from the Constitution and is filled through the electoral process established by the Twelfth Amendment.

Accordingly, congressional authority over the Vice President should be analyzed with greater caution than authority over ordinary executive officials.

3. Cabinet Secretaries and Other Principal Officers

Cabinet secretaries occupy the opposite end of the spectrum from career employees in one respect: they exercise substantial executive authority and are directly connected to the President through the constitutional appointment structure.

Article II provides for presidential nomination and Senate confirmation of principal officers. Cabinet secretaries fall within this category.

Their constitutional position has two important consequences for ethics regulation.

First, Congress possesses substantial authority to establish the departments and offices in which Cabinet secretaries serve. Congress may therefore establish statutory duties, qualifications, reporting obligations, and generally applicable ethical requirements.

Second, the President must retain meaningful authority to supervise the officials exercising those duties.

The Supreme Court's modern removal cases make the second proposition particularly important. *Seila Law* held that Congress could not insulate the single Director of the CFPB from presidential removal except for cause, emphasizing the President's constitutionally grounded responsibility for executive administration. *Collins* subsequently applied the same principle to the FHFA Director. The Court's modern cases therefore make clear that Congress's power to structure an executive office does not include unlimited power to determine the extent to which its principal officer remains accountable to the President.

That does not mean that a Cabinet secretary may disregard statutory ethics requirements. To the contrary, the President's Take Care responsibility presupposes that executive officers will comply with federal law.

The constitutional relationship can therefore be understood as follows:

Congress establishes the statutory rules; the President supervises the officer's execution of those rules.

This is not a conflict between legislative and executive authority. It is the constitutional arrangement itself.

4. Inferior Officers

The constitutional status of inferior officers is more complicated.

The Appointments Clause expressly permits Congress to vest appointment of inferior officers in:

- the President alone;
- courts of law; or
- heads of departments.

That constitutional flexibility reflects a recognition that not every federal official exercising governmental authority must be appointed in precisely the same manner as a Cabinet secretary.

The Supreme Court's decisions in *Morrison v. Olson* and *Edmond v. United States* provide important guidance.

In *Morrison*, the Court upheld statutory restrictions on removal of an independent counsel, emphasizing the officer's status as an inferior officer and the limited nature of the office's responsibilities. *Edmond*, in turn, emphasized that "inferior officers" are generally those whose work is directed and supervised at some level by principal officers appointed by presidential nomination and Senate confirmation.

The modern Article II cases have complicated, but not eliminated, these distinctions. *Seila Law* treated *Morrison* as a narrow exception rather than as a general license for Congress to insulate executive officials from presidential control.

For ethics regulation, the practical implication is that Congress possesses considerable authority to define the duties and ethical obligations of inferior officers, but it should not assume that their inferior status permits unlimited insulation from presidential supervision.

The relevant question is functional and structural:

- How much executive authority does the officer exercise?
- Who appoints the officer?
- Who supervises the officer?
- Who may remove the officer?
- Does the statutory structure preserve an identifiable chain of accountability?

An ethics provision that imposes a substantive conduct rule ordinarily presents little Article II difficulty. An ethics provision that simultaneously establishes an independent officer with significant executive authority and insulates that officer from presidential supervision presents a considerably more difficult constitutional question.

5. Career Executive Employees

Congress possesses its broadest authority over ordinary career executive employees.

Unlike constitutional officers, career civil servants generally do not possess independent constitutional authority. Their authority ordinarily derives from statutory offices, delegations, and employment relationships established within the Executive Branch.

Congress may consequently establish extensive rules concerning:

- conflicts of interest;
- financial disclosure;
- gifts;
- outside employment;
- political activity;
- use of government resources;
- post-employment conduct;
- confidentiality;
- procurement;
- financial transactions;
- professional misconduct.

The constitutional basis for such regulation is particularly strong because Congress is regulating the legal conditions of federal employment rather than attempting to alter the President's constitutional authority.

This does not mean that career employees have no constitutional protections. Federal employees remain protected by applicable constitutional rights, including due process and, where applicable, speech and associational rights. Congress therefore cannot use "ethics" as a label to evade other constitutional limitations.

But those limitations are analytically distinct from Article II presidential-control concerns.

The central Article II question for a career employee is generally not whether Congress may prescribe ethical standards. It is whether Congress has structured the employee's position in a way that improperly displaces presidential control over the Executive Branch.

That distinction is critical. Congress can establish civil-service ethics rules without thereby acquiring authority to supervise individual employees.

6. Independent Agencies and Officers

Independent agencies occupy a particularly contested position in the constitutional framework.

The Court's early twentieth-century jurisprudence recognized that Congress could establish certain multimember commissions with protections against at-will presidential removal. *Humphrey's Executor* remains the principal precedent, although the Court's recent decisions have sharply limited the reasoning that can safely be drawn from it.

In *Seila Law*, the Court distinguished *Humphrey's Executor* on the ground that the CFPB was headed by a **single** Director possessing substantial executive authority. The Court described the

FTC arrangement approved in *Humphrey's Executor* as a historical exception involving a multimember body exercising distinct regulatory functions.

That distinction matters for ethics institutions.

Congress has considerably stronger constitutional footing when it establishes an ethics framework administered within the ordinary Executive Branch than when it creates a new independent executive authority with substantial coercive power.

The constitutional problem becomes particularly acute if an "ethics" institution is empowered to:

- investigate executive officials;
- compel compliance;
- adjudicate violations;
- impose binding sanctions;
- direct executive officers;
- or exercise significant enforcement authority,

while simultaneously being insulated from presidential supervision.

Calling such an entity an "ethics office" would not resolve the Article II question. Constitutional analysis would turn on the authority the office actually exercises.

VII. Constitutional Implications of the Principal Executive Powers

A. Appointment Authority

Congressional ethics regulation can implicate the Appointments Clause in two distinct ways.

The first concerns the **officials being regulated**.

The second concerns the **officials enforcing the regulations**.

The first generally presents little difficulty. Congress may establish qualifications and ethical requirements for officers appointed under Article II so long as the requirements do not contradict constitutional qualifications or otherwise interfere with the appointment power.

The second can be more difficult.

If Congress creates an ethics official who exercises significant authority under federal law, that individual may qualify as an "Officer of the United States" and must be appointed in accordance with Article II.

The Supreme Court's Appointments Clause cases therefore establish an important structural limitation:

Congress may create an office without possessing unrestricted authority to determine who exercises the office's federal power.

This becomes especially relevant when considering independent ethics enforcement. Congress cannot circumvent the Appointments Clause simply by describing an official as an "advisor," "reviewer," or "ethics officer" if the individual actually exercises significant governmental authority.

B. Removal Authority

Removal presents the most developed intersection between ethics regulation and presidential control.

The Supreme Court's modern doctrine can be summarized cautiously.

Congress generally may not impose removal restrictions that prevent the President from adequately supervising principal officers exercising executive authority. The Court has recognized certain historical exceptions, but *Seila Law* and *Collins* substantially reinforce the presumption of presidential removal authority.

This has two consequences for ethics regulation.

First, Congress cannot ordinarily make compliance with an ethics statute enforceable by an executive official who is structurally insulated from presidential control merely because the subject matter is "ethics."

Second, Congress may impose statutory disciplinary standards without necessarily controlling removal itself.

That distinction is subtle but important.

A statute can say:

An executive officer shall not participate in a matter presenting a prohibited financial conflict.

That is a substantive legal restriction.

A different statute could say:

Only an independent official may determine whether the officer violated the restriction, and the President may not remove that official.

That provision implicates the separate question of executive control.

The constitutional validity of the first proposition does not automatically establish the validity of the second.

C. Executive Privilege

Executive privilege presents a different problem.

Congress's authority to regulate ethics necessarily carries with it some ability to obtain information concerning executive conduct. But the President possesses constitutional interests in confidentiality, particularly where disclosure would impair the functioning of the Executive Branch.

United States v. Nixon established that executive privilege is constitutionally grounded but qualified. The President's generalized interest in confidentiality cannot automatically overcome a demonstrated need for evidence in a criminal proceeding.

The congressional context is more complicated because the Constitution does not establish an express hierarchy between congressional oversight and executive privilege. The Supreme Court's subsequent cases, including *Trump v. Mazars USA, LLP*, emphasize that disputes involving congressional demands for presidential information require careful attention to separation-of-powers considerations rather than categorical rules.

Consequently, an ethics statute requiring disclosure does not necessarily eliminate executive privilege.

A constitutional analysis must instead ask:

1. What information does Congress require?
2. From whom?
3. For what legislative purpose?
4. How closely does the request implicate presidential decision-making?
5. What accommodations are available?
6. Does the disclosure requirement substantially interfere with Article II functions?

This distinction becomes particularly important where an ethics requirement seeks information concerning presidential communications, national security, or deliberative executive decision-making.

D. Presidential Immunity

Presidential immunity is now an especially important component of the constitutional framework because of the Supreme Court's 2024 decision in *Trump v. United States*.

The Court held that the Constitution confers absolute immunity from criminal prosecution for a former President's exercise of core constitutional powers and at least presumptive immunity for other official acts. It simultaneously emphasized that the President receives no immunity for unofficial acts.

The case does not establish that Congress is prohibited from imposing ethical standards upon executive officials. Nor does it hold that all presidential conduct is beyond legislative regulation.

Its significance is instead structural.

The decision reinforces the existence of a constitutionally protected sphere surrounding presidential official action. That sphere must be considered when evaluating whether Congress may prescribe, investigate, or enforce ethical requirements against the President personally.

The distinction between **statutory regulation** and **criminal prosecution** is especially important. *Trump* addressed the latter. A conclusion that a President possesses immunity from criminal prosecution for a particular official act does not necessarily imply that Congress cannot establish a prospective statutory standard governing the conduct of executive officials.

At the same time, Congress could not avoid the constitutional problem simply by labeling an enforcement mechanism an "ethics" proceeding if the mechanism functionally subjected the President's core constitutional acts to control by another branch.

The precise interaction between *Trump*'s immunity doctrine and congressional ethics legislation therefore remains an unresolved constitutional question.

VII. Supreme Court Doctrine

A. *Myers v. United States*, 272 U.S. 52 (1926)

Court and year: Supreme Court of the United States, 1926.

1. Facts

Frank Myers was appointed by President Woodrow Wilson, with the advice and consent of the Senate, as a first-class postmaster in Portland, Oregon. The governing statute provided that first-, second-, and third-class postmasters were appointed and removable by the President with the

advice and consent of the Senate. Wilson removed Myers without obtaining Senate approval. Myers's estate subsequently sought salary allegedly owed for the remainder of his term.

2. Constitutional question

The central question was whether Congress could condition the President's authority to remove an executive officer upon the approval of the Senate.

The case therefore presented an unusually direct conflict between congressional control over statutory offices and presidential authority to supervise executive officers.

3. Holding

The Court held that the statutory restriction was unconstitutional insofar as it required senatorial participation in the President's removal of the postmaster. The President possessed the constitutional authority to remove the officer without Senate approval.

Chief Justice Taft's opinion treated removal as an incident of executive authority and connected presidential removal to the President's constitutional obligation to ensure faithful execution of federal law.

4. Reasoning

Myers relied heavily upon constitutional structure and historical practice.

The Court reasoned that the President must possess sufficient authority over executive officers to discharge the responsibilities imposed upon him by Article II. The Take Care Clause was particularly important: if the President is constitutionally responsible for faithful execution of federal law, he must possess meaningful authority to determine who exercises executive functions under his supervision.

The Court also relied extensively upon the First Congress's debates concerning the President's removal authority. Chief Justice Taft regarded the historical understanding of the First Congress as powerful evidence that removal authority was understood as belonging to the President.

The decision consequently linked three propositions:

1. executive power is vested in the President;
2. the President is constitutionally responsible for execution of federal law; and
3. presidential supervision requires authority to remove executive officers.

This produced a broad conception of presidential removal authority.

5. Scope and limitations

Myers should not be read as establishing that Congress lacks authority to regulate executive officers.

The case concerned a specific form of congressional interference: Congress had attempted to require Senate participation in the President's removal decision.

That distinction matters enormously for executive ethics.

Nothing in *Myers* suggests that Congress cannot prescribe legal duties for executive officers. Indeed, the very office at issue was created by statute, and Congress necessarily possessed authority to establish the legal conditions under which the office operated.

The constitutional defect arose because Congress attempted to reserve to itself a role in the **execution and supervision of the office**, rather than merely prescribing the legal framework governing it.

The case thus supplies an early version of the distinction developed throughout this memorandum:

Congress may establish the legal obligations of executive officials; it may not thereby assume the President's constitutional responsibility for supervising their execution of federal law.

6. Subsequent treatment

The breadth of *Myers* was subsequently limited by *Humphrey's Executor*, which recognized that Congress could impose removal restrictions on members of certain independent commissions. *Morrison* later upheld a more limited removal restriction concerning an inferior officer. Subsequent decisions, including *Free Enterprise Fund*, *Seila Law*, and *Collins*, nevertheless revived and strengthened the central proposition that presidential control over executive officers is constitutionally significant.

The doctrinal landscape changed materially in 2026. In **Trump v. Slaughter, 609 U.S. ____ (2026)**, the Supreme Court expressly overruled *Humphrey's Executor* to the extent it authorized Congress to restrict presidential removal of officers exercising executive power. The Court reasoned that the Constitution vests executive power in the President and that officers exercising executive power must remain subject to presidential control.

That development is critical to this memorandum. As of July 2026, *Myers* is no longer merely an important historical precedent whose breadth has been moderated by *Humphrey's Executor*. Its central conception of presidential control has been substantially restored as the governing rule.

7. Relevance to congressional ethics regulation

Myers supports several propositions relevant to ethics regulation.

Congress may:

- establish executive offices;
- define their statutory duties;
- impose ethical obligations on their occupants;
- prescribe generally applicable rules governing executive conduct.

But Congress may not use those ethical requirements as a pretext for acquiring direct control over the President's supervision of executive officials.

The distinction is particularly important for enforcement mechanisms. A statute requiring an officer to avoid financial conflicts is materially different from one giving Congress authority to determine whether the officer remains in office following an alleged violation.

The former establishes a rule of law. The latter potentially exercises executive power.

Classification: *Myers* is **controlling precedent** for the proposition that Congress may not impose a Senate-veto requirement upon presidential removal of executive officers, and its broader presidential-control principle has been significantly reinforced by subsequent precedent, culminating in *Trump v. Slughter*.

B. Humphrey's Executor v. United States, 295 U.S. 602 (1935)

1. Facts

William E. Humphrey was appointed by President Herbert Hoover and confirmed by the Senate to serve as a commissioner of the Federal Trade Commission. The FTC Act provided that commissioners could be removed by the President only for "inefficiency, neglect of duty, or malfeasance in office."

After Franklin Roosevelt became President, he requested Humphrey's resignation because Humphrey's political and policy views differed from those of the new administration. Humphrey refused, and Roosevelt removed him without invoking one of the statutory grounds. Humphrey subsequently died, and his estate sought the salary he would have received for the remainder of his term.

2. Constitutional question

Could Congress constitutionally restrict the President's ability to remove members of the FTC by requiring cause for removal?

3. Holding

In 1935, the Court held that the removal restriction was constitutional and that Roosevelt's removal of Humphrey was unlawful.

The Court distinguished *Myers* and concluded that the FTC was fundamentally different from the purely executive office at issue there.

4. Reasoning

The Court characterized the FTC as a multimember body exercising what it described as "quasi-legislative" and "quasi-judicial" functions rather than purely executive functions.

That functional characterization allowed the Court to distinguish the FTC from executive officers whose responsibilities were directly subject to presidential control.

The decision therefore rested upon a conception of independent agencies as occupying a distinct institutional category. Congress could protect commissioners from removal for political reasons because, in the Court's view, the commission's functions required independence from presidential policy control.

5. Subsequent treatment—and current status

For decades, *Humphrey's Executor* represented the principal constitutional basis for independent agencies with for-cause removal protections.

That is **no longer the law**.

The Supreme Court's decisions in *Free Enterprise Fund*, *Seila Law*, and *Collins* progressively narrowed the reasoning underlying *Humphrey's Executor*. Most significantly, on June 29, 2026, the Court decided *Trump v. Slaughter*, expressly overruling *Humphrey's Executor* insofar as it permitted statutory restrictions on presidential removal of officers exercising executive power.

The Court reasoned that the FTC exercises executive power and therefore falls within the constitutional principle that executive officers must remain accountable to the President. The Court specifically rejected the historical distinction between "quasi-legislative" and "quasi-judicial" functions as sufficient to justify removing executive officials from presidential control.

The Court did preserve the possibility that Congress may establish independent entities performing functions that are **not executive in character**. But it rejected the proposition that Congress can impose an independent agency upon the President while simultaneously denying the President control over officers exercising executive power.

6. Relevance to ethics regulation

The 2026 overruling of *Humphrey's Executor* significantly changes the constitutional analysis of independent ethics institutions.

Before *Trump v. Slaughter*, one could plausibly argue that Congress possessed authority to establish an independent ethics commission modeled upon the FTC, provided that the commission's structure resembled the multimember agency upheld in *Humphrey's Executor*.

That argument is now substantially weakened.

The controlling question is no longer whether an ethics body resembles the FTC of 1935. The relevant inquiry is whether the body exercises **executive power**.

If it does, *Trump v. Slaughter* establishes that Congress cannot simply insulate its officers from presidential removal by characterizing their functions as quasi-legislative, quasi-judicial, or "independent."

This distinction is especially consequential because an ethics institution could potentially exercise several kinds of authority:

- advisory authority;
- investigative authority;
- adjudicatory authority;
- disciplinary authority;
- prosecutorial authority.

The more an institution moves toward coercive execution of federal law, the stronger the Article II argument that its officers exercise executive power.

Classification: *Humphrey's Executor* is now **overruled precedent** to the extent it permitted removal protection for officers exercising executive power. Its historical discussion remains relevant, but it should not be presented in the final memorandum as current controlling doctrine.

C. *United States v. Nixon*, 418 U.S. 683 (1974)

1. Facts

The Watergate special prosecutor obtained a subpoena requiring President Richard Nixon to produce tape recordings and documents concerning conversations relevant to criminal proceedings against members of his administration. Nixon asserted executive privilege and argued that the judiciary lacked authority to compel production of presidential communications.

2. Constitutional question

Could the President invoke an absolute, constitutionally based executive privilege to resist a judicial subpoena for evidence relevant to a criminal prosecution?

3. Holding

The Court unanimously rejected an **absolute** presidential privilege and ordered compliance with the subpoena, subject to judicial procedures protecting legitimate confidentiality interests.

4. Reasoning

The Court recognized a constitutionally grounded presidential interest in confidentiality.

That interest followed from the President's need to receive candid advice and from the separation of powers. The Court nevertheless rejected the proposition that confidentiality was absolute.

The Court distinguished a generalized claim of presidential confidentiality from a specific need for evidence in a criminal proceeding. Where a demonstrated judicial need for evidence conflicts with generalized confidentiality, the latter does not automatically prevail.

The decision therefore established two propositions simultaneously:

1. presidential communications can possess constitutional protection; and
2. that protection is qualified rather than absolute.

The distinction is important because *Nixon* did not deny executive privilege. It constitutionalized it while simultaneously limiting its scope.

5. Scope and limitations

Nixon concerned a **judicial subpoena in a criminal proceeding**, not congressional oversight.

The Court therefore did not establish a universal balancing test governing every congressional demand for executive information.

Nor did it hold that every executive communication must be disclosed whenever Congress asserts a legitimate legislative interest.

Subsequent cases have treated congressional demands for presidential information as presenting their own separation-of-powers problems. Most notably, *Trump v. Mazars USA, LLP*, 591 U.S. 848 (2020), rejected both an absolute presidential immunity from congressional subpoenas and an approach treating congressional demands as ordinary subpoenas. The Court required careful consideration of separation-of-powers concerns and the burdens imposed on the Presidency.

6. Relevance to executive ethics

Nixon is highly relevant to ethics regulation because ethical oversight frequently depends upon information.

Congress may reasonably need information concerning:

- financial interests;
- communications concerning potential conflicts;
- government contracting;
- gifts and benefits;
- outside financial relationships;
- misconduct investigations.

But the existence of an ethics purpose does not automatically defeat executive privilege.

A constitutionally sound ethics regime therefore must distinguish between:

ordinary administrative information, where Congress's disclosure authority is comparatively strong, and

presidential communications or information implicating core executive functions, where separation-of-powers concerns become significantly more serious.

The crucial lesson of *Nixon* is that neither side possesses an absolute constitutional trump card. Executive confidentiality is constitutionally significant, but so too are legitimate governmental demands for information.

Classification: *Nixon* remains **controlling precedent** for the proposition that executive privilege is constitutionally grounded but qualified in the judicial context. Its precise application to congressional ethics oversight remains partly governed by later congressional-subpoena cases.

D. Nixon v. Administrator of General Services, 433 U.S. 425 (1977)

1. Facts

Following President Nixon's resignation, Congress enacted the Presidential Recordings and Materials Preservation Act. The statute directed the Administrator of General Services to take custody of Nixon's presidential papers and tape recordings, preserve them, and screen them for materials subject to various legal and historical requirements.

Nixon challenged the statute, arguing that it violated separation-of-powers principles and impermissibly interfered with presidential confidentiality and the functioning of the Presidency.

2. Constitutional question

Did Congress's statutory control over presidential papers and recordings impermissibly interfere with the President's constitutional authority or violate separation of powers?

3. Holding

The Court upheld the statute.

The Court rejected Nixon's contention that the Act constituted an unconstitutional intrusion upon the Executive Branch.

4. Reasoning

The Court treated separation of powers as requiring assessment of the actual burdens imposed upon presidential functions rather than the application of an automatic rule whenever Congress regulates matters touching the Presidency.

The Court recognized that presidential confidentiality serves important constitutional interests. But it concluded that those interests did not create an absolute presidential right to control all presidential records after leaving office.

Several factors mattered.

The statute imposed relatively limited burdens upon the functioning of the Presidency, particularly because Nixon was no longer President. It also served substantial governmental interests involving preservation of historically significant records and protection of evidence relevant to governmental misconduct.

The Court therefore declined to treat presidential confidentiality as an absolute constitutional privilege against congressional regulation.

5. Scope and limitations

Nixon v. GSA does not establish that Congress possesses plenary authority over presidential records or presidential communications.

Its importance lies instead in its rejection of categorical reasoning.

The Court considered:

- the nature of the presidential interest;
- the nature of the congressional regulation;
- the actual burden imposed;

- the governmental interests served;
- the extent to which the statute interfered with the functioning of another branch.

This functional analysis remains important, although later Article II cases have placed greater emphasis on formal structural principles concerning presidential control.

6. Relevance to executive ethics

Nixon v. GSA provides useful guidance where congressional ethics regulation implicates presidential records or confidentiality.

It suggests that the constitutional question should not be framed as:

"Does Congress have authority to regulate anything touching the President?"

Nor should it be framed as:

"Does the President possess an absolute right to control all information concerning presidential conduct?"

The proper inquiry is whether the specific statutory requirement imposes an unconstitutional burden on a constitutionally protected presidential function.

For ethics regulation, this supports a distinction between:

- disclosure requirements concerning ordinary financial and administrative matters; and
- compelled disclosure of materials closely connected to presidential deliberation or core Article II functions.

The latter presents substantially greater constitutional difficulty.

Classification: *Nixon v. GSA* remains **controlling precedent**, subject to subsequent refinement of separation-of-powers doctrine.

F. *Bowsher v. Synar*, 478 U.S. 714 (1986)

Court and year: Supreme Court of the United States, 1986.

1. Facts

The Gramm-Rudman-Hollings Act sought to reduce the federal deficit through a statutory mechanism requiring automatic spending reductions when projected deficits exceeded specified targets. The Act assigned the Comptroller General responsibility for calculating the reductions and submitting a report that effectively determined which federal programs would be cut.

The Comptroller General was appointed by the President from a list submitted by Congress, but could be removed by Congress through a joint resolution for specified causes. The question was therefore not merely whether Congress could establish a deficit-control mechanism, but whether Congress could place responsibility for executing that mechanism in an official whom Congress itself retained the power to remove.

2. Constitutional question

Could Congress constitutionally vest executive authority in an officer subject to congressional removal?

3. Holding

No.

The Court held that the statutory arrangement violated separation of powers because the Comptroller General was exercising executive functions while remaining subject to congressional control.

4. Reasoning

The Court emphasized a fundamental distinction between **legislating** and **executing**.

Congress may enact laws establishing substantive standards. Once enacted, however, the execution of those laws belongs to the Executive Branch unless the Constitution provides otherwise.

The critical defect in *Bowsher* was therefore not simply that Congress had created the Comptroller General or had given the office important responsibilities. Congress had retained a mechanism by which it could remove the official responsible for executing the law.

That arrangement effectively made the Comptroller General accountable to Congress rather than to the President.

The Court reasoned that Congress could not reserve to itself the power to execute or supervise execution of federal law merely by structuring the implementing official as part of the legislative branch.

5. Scope and limitations

Bowsher does not establish that Congress is constitutionally barred from creating offices that perform functions touching executive administration.

Nor does it prohibit Congress from investigating executive conduct, receiving reports from executive agencies, or establishing statutory standards whose violation may result in executive enforcement.

Its central rule is narrower and more important:

Congress may not retain removal or supervisory authority over an official who exercises executive power.

The distinction is directly relevant to ethics enforcement.

Congress could establish an ethics requirement and require executive officials to report compliance. But if Congress itself retained authority to remove the official charged with determining compliance, the arrangement could resemble the unconstitutional structure in *Bowsher*.

The problem would be particularly pronounced if the congressional official could make binding determinations concerning:

- whether an executive officer violated an ethics law;
- whether an officer must recuse;
- whether an officer must be disciplined;
- whether an executive decision is legally permissible.

Such authority could cross the constitutional boundary between **legislative oversight** and **executive administration**.

6. Subsequent treatment

Bowsher remains an important separation-of-powers precedent. Its principle is reinforced by later cases emphasizing presidential control over executive officers.

It should nevertheless be distinguished from cases involving congressional reporting requirements or oversight. The constitutional defect in *Bowsher* arose from Congress's retention of **control over an officer exercising executive power**, not merely from Congress's receipt of information.

7. Relevance to executive ethics regulation

Bowsher is among the most important precedents for evaluating the institutional design of executive ethics enforcement.

It suggests a constitutional line between:

Permissible congressional involvement

- establishing ethical standards;
- requiring executive reporting;
- demanding information for legislative purposes;
- conducting investigations;
- appropriating funds;
- amending statutory ethics requirements.

and constitutionally problematic congressional control

- directing individual enforcement decisions;
- retaining removal authority over executive enforcement personnel;
- exercising continuing supervision over executive officers;
- making binding executive determinations.

The case therefore supplies a crucial structural principle:

Congress may oversee executive ethics; it may not become the executive ethics administrator.

Classification: Controlling precedent.

***G. Morrison v. Olson*, 487 U.S. 654 (1988)**

1. Facts

The Ethics in Government Act of 1978 created the position of independent counsel to investigate and, where appropriate, prosecute certain high-ranking executive officials. The Attorney General could conduct a preliminary investigation and, upon specified findings, refer the matter to a special court, which appointed an independent counsel.

The independent counsel possessed substantial investigative and prosecutorial authority but could be removed by the Attorney General only for "good cause," physical or mental disability, or impairment of official duties.

The case arose from an investigation involving Theodore Olson and other executive officials. Olson challenged the statute's appointment and removal provisions.

2. Constitutional questions

The case presented several questions, including:

1. Was the independent counsel an inferior officer whose appointment could constitutionally be vested in a court?
2. Did the removal restriction impermissibly interfere with presidential authority?
3. Did the statute violate separation of powers by limiting the Attorney General's control over the independent counsel?

3. Holding

The Court upheld the statute.

It concluded that the independent counsel was an **inferior officer** for purposes of the Appointments Clause and that the removal restriction did not violate separation of powers.

4. Reasoning

The Court's approach was substantially functional.

With respect to the Appointments Clause, the Court emphasized the independent counsel's limited jurisdiction, limited tenure, and limited duties. The officer was therefore sufficiently subordinate to qualify as an inferior officer.

With respect to removal, the Court rejected the proposition that every restriction upon presidential removal is constitutionally invalid. Instead, the Court asked whether the restriction "unduly trammels on executive authority."

Several factors supported the statute:

- the independent counsel was an inferior officer;
- the Attorney General retained some supervisory authority;
- the removal restriction was limited to good cause;
- the President retained indirect influence through the Attorney General;
- the independent counsel's jurisdiction was limited.

The Court consequently concluded that the statute did not impermissibly interfere with the President's constitutional duties.

5. The significance of *Morrison* after *Seila Law*, *Collins*, and *Trump v. Slaughter*

Morrison is particularly important because its reasoning now occupies an increasingly contested position in the Court's Article II jurisprudence.

Seila Law did not formally overrule *Morrison*. Instead, the Court characterized *Morrison* as involving an inferior officer with limited duties and emphasized that the case did not authorize broad congressional experimentation with removal restrictions.

Similarly, *Collins* reinforced the principle that presidential removal authority is constitutionally significant.

Most importantly for present purposes, the Supreme Court's 2026 decision in *Trump v. Slaughter* expressly rejected the broad conception of congressional authority over executive officers that had developed around *Humphrey's Executor*. The Court explained that an officer exercising executive power generally must remain subject to presidential control.

The Court did not expressly overrule *Morrison*, however. The decision therefore remains an important—although increasingly narrow—precedent concerning inferior officers and limited removal restrictions.

6. Scope and limitations

Morrison should not be read as establishing a general rule that Congress may impose good-cause removal protection whenever doing so serves an important governmental interest.

The Court's reasoning depended heavily upon the particular structure of the independent counsel.

The officer:

- exercised limited jurisdiction;
- was appointed pursuant to the Appointments Clause;
- was removable by a superior executive officer for cause;
- operated within a statutory framework limiting the office's authority.

The modern Court has repeatedly emphasized these characteristics.

7. Relevance to executive ethics regulation

Morrison has obvious relevance because independent counsel authority arose from an ethics-related statute.

The case demonstrates that Congress historically possessed substantial authority to establish mechanisms for investigating alleged misconduct by executive officials, even when those mechanisms imposed some restrictions upon ordinary presidential supervision.

But the modern significance of *Morrison* is more limited.

A post-*Seila Law* and post-*Trump v. Slaughter* analysis would need to ask whether an ethics officer:

1. is an inferior officer;
2. exercises significant executive authority;
3. remains subject to meaningful supervision by a principal executive officer;
4. possesses limited jurisdiction;
5. is subject to removal restrictions that meaningfully interfere with presidential control.

The more an ethics official resembles a principal officer exercising substantial executive power, the weaker the argument that *Morrison* validates congressional insulation.

Classification: Controlling precedent, but narrow and increasingly qualified by later Article II decisions.

H. *Edmond v. United States*, 520 U.S. 651 (1997)

1. Facts

The case concerned military judges serving on the Coast Guard Court of Criminal Appeals. The petitioners argued that their appointment violated the Appointments Clause because they were principal rather than inferior officers and therefore had not been appointed through the constitutionally required process.

2. Constitutional question

What makes an officer "inferior" for purposes of the Appointments Clause?

3. Holding

The Court held that the military judges were inferior officers.

The Court emphasized that they were subject to direction and supervision by principal officers.

4. Reasoning

The Court described the "key" characteristic of an inferior officer as one whose work is directed and supervised "at some level" by a principal officer appointed by presidential nomination and Senate confirmation.

This formulation is important because it links the Appointments Clause to the broader constitutional principle of presidential supervision.

An officer's inferior status is not determined merely by title. The structure of supervision matters.

5. Scope and limitations

Edmond primarily concerns the Appointments Clause rather than removal.

It should therefore not be read as establishing that every inferior officer must be removable at will by the President.

Nevertheless, it provides a powerful structural indicator: **subordination matters**.

The Court's conception of inferior officers presupposes a chain of authority extending upward through principal officers who themselves are constitutionally accountable to the President.

6. Relevance to executive ethics regulation

Edmond has particular relevance if Congress establishes ethics officials within executive agencies.

Suppose Congress creates an ethics officer with authority to:

- investigate agency employees;
- issue binding determinations;
- impose sanctions;
- direct recusals.

The officer's constitutional status would depend partly upon the relationship between that officer and the agency's principal leadership.

If the officer is genuinely subordinate to a presidentially accountable principal officer, *Edmond* supports treating the position as an inferior office.

If Congress instead attempts to create an ethics officer whose authority is both substantial and insulated from agency leadership, the Appointments Clause and Article II questions become more difficult.

The case therefore reinforces an important principle for the memorandum:

Congressional regulation of executive ethics is constitutionally easier to sustain when enforcement remains embedded within a recognizable presidential chain of supervision.

Classification: Controlling precedent concerning the constitutional meaning of "inferior officer."

***Free Enterprise Fund v. Public Company Accounting Oversight Board*, 561 U.S. 477 (2010)**

1. Facts

The Sarbanes-Oxley Act established the Public Company Accounting Oversight Board (PCAOB) to regulate the accounting profession.

The Board members could be removed by the Securities and Exchange Commission only for specified causes. SEC commissioners themselves were protected by the *Humphrey's Executor* removal restriction.

The result was a **double layer of for-cause removal protection** separating PCAOB members from direct presidential control.

The Free Enterprise Fund challenged that structure.

2. Constitutional question

Did the statutory scheme violate Article II by placing executive officers behind two layers of removal protection?

3. Holding

Yes.

The Court held that the dual for-cause removal structure was unconstitutional.

4. Reasoning

The Court emphasized presidential control as an essential component of executive power.

The President could not effectively supervise PCAOB members if the President could remove SEC commissioners only for cause and the commissioners could themselves remove PCAOB members only for cause.

The Court described this as an impermissible "second level of tenure protection."

The decision did not merely concern removal mechanics. It rested upon a broader constitutional premise:

The President must possess sufficient control over officers exercising executive power to discharge the constitutional responsibility to ensure faithful execution of the laws.

5. Scope and limitations

The Court did not hold that all removal restrictions are unconstitutional.

Instead, it invalidated the **combination** of two layers of protection.

It also emphasized that its decision did not disturb the "unusual situation" of *Morrison*, which involved an inferior officer with limited duties and jurisdiction.

The decision therefore simultaneously:

- strengthened presidential control;
- preserved a narrow space for *Morrison*;
- left *Humphrey's Executor* formally intact at the time.

6. Subsequent treatment

The decision became a major foundation for *Seila Law* and *Collins*.

Its importance increased further when the Court eventually reconsidered *Humphrey's Executor* itself.

After *Trump v. Slaughter* in 2026, the principal doctrinal proposition of *Free Enterprise Fund* is even clearer: Congress cannot construct layers of statutory insulation that prevent the President from exercising meaningful supervision over executive officials. The 2026 decision expressly relied upon the line of cases culminating in the rejection of *Humphrey's* removal protection.

7. Relevance to executive ethics regulation

Free Enterprise Fund is highly relevant to the design of ethics enforcement.

A statutory ethics scheme could create constitutional difficulty if Congress establishes:

Congress → independent ethics board → agency head → subordinate officer

and gives multiple levels of officials protection from presidential removal.

The problem would not be the existence of ethical regulation itself. It would be the **structural insulation of the officials exercising executive power**.

Congress therefore has considerably greater constitutional latitude to impose ethics rules than to create an insulated hierarchy responsible for enforcing those rules.

Classification: Controlling precedent.

J. Lucia v. Securities and Exchange Commission, 585 U.S. 237 (2018)

1. Facts

Lucia was subjected to proceedings before an SEC administrative law judge. The ALJ had been selected through a process that the Supreme Court concluded did not comply with the Appointments Clause.

2. Constitutional question

Were SEC administrative law judges "Officers of the United States" subject to the Appointments Clause?

3. Holding

Yes.

The Court concluded that the ALJs exercised significant authority pursuant to federal law and therefore qualified as constitutional officers whose appointments had to comply with Article II.

4. Reasoning

The Court relied on the framework established in earlier Appointments Clause cases, particularly whether the individual exercises "significant authority pursuant to the laws of the United States."

The ALJs possessed substantial adjudicatory authority, including taking testimony, conducting trials, ruling on evidence, and issuing decisions subject to review.

Their authority therefore went beyond that of ordinary federal employees.

5. Scope and limitations

Lucia does not establish that every federal employee is an officer.

Its significance lies in identifying the constitutional threshold between employees and officers.

An individual possessing significant governmental authority must be appointed through constitutionally prescribed means.

6. Relevance to executive ethics regulation

Lucia is relevant whenever Congress establishes an ethics official with adjudicatory or coercive authority.

An ethics employee who merely advises agency personnel may remain an employee.

An official who can issue binding determinations or exercise substantial adjudicatory authority may instead qualify as an Article II officer.

Congress therefore cannot evade the Appointments Clause by creating a powerful ethics position and labeling its occupant an "employee."

The constitutional inquiry turns on **function rather than title**.

This reinforces the central principle emerging from *Edmond*, *Free Enterprise Fund*, and *Seila Law*: constitutional analysis depends heavily upon the actual authority an official exercises and the official's position within the presidential chain of command.

Classification: Controlling precedent concerning the Appointments Clause.

K. Seila Law LLC v. Consumer Financial Protection Bureau, 591 U.S. 197 (2020)

1. Facts

The CFPB was established by the Dodd-Frank Act and headed by a single Director appointed by the President with Senate confirmation.

The Director served a five-year term and could be removed by the President only for "inefficiency, neglect of duty, or malfeasance in office."

The CFPB issued a civil investigative demand to Seila Law. The firm challenged the agency's authority, arguing that the agency's single-director structure combined with for-cause removal protection violated separation of powers.

2. Constitutional question

Could Congress vest substantial executive authority in a single agency director who was insulated from presidential removal except for cause?

3. Holding

No.

The Court held that the CFPB's removal restriction violated the separation of powers.

The Court severed the unconstitutional removal restriction rather than invalidating the CFPB itself.

4. Reasoning

The Court emphasized that the Constitution does not merely create an Executive Branch; it vests executive power in a **President**.

A single executive officer possessing substantial authority but insulated from presidential removal presented a particularly serious constitutional problem.

The Court distinguished *Humphrey's Executor* on several grounds, including:

- the FTC was multimember;
- the FTC historically performed different functions;
- the CFPB's Director possessed substantial executive authority;
- the CFPB's single-director structure concentrated substantial power in one individual.

The Court described the President's removal authority as an important mechanism of political accountability.

5. Scope and limitations

Seila Law did not hold that every restriction on presidential removal is unconstitutional.

The Court identified two historical exceptions:

1. certain multimember bodies, principally associated with *Humphrey's Executor*; and
2. the independent counsel in *Morrison*.

The Court nevertheless treated those exceptions as narrow rather than as general authority for Congress to create independent executive officers.

That distinction became substantially more consequential after *Trump v. Slaughter* overruled *Humphrey's Executor*.

6. Subsequent treatment

Seila Law has become one of the central cases in modern presidential-control doctrine.

Its reasoning was reinforced by *Collins* and ultimately carried further by *Trump v. Slaughter*, which rejected the continuing validity of *Humphrey's* to the extent it permitted congressional restrictions on removal of executive officers.

7. Relevance to executive ethics regulation

Seila Law substantially narrows the constitutional room for an **independent executive ethics authority**.

Congress can establish ethics requirements.

It can establish offices responsible for administering those requirements.

But if those officials exercise substantial executive power, Congress may not assume that they can constitutionally be insulated from presidential removal merely because their mission is "ethics."

The case therefore requires an important distinction between:

Ethics independence as professional judgment

and

constitutional independence from presidential control.

Congress may reasonably require an ethics official to apply statutory standards impartially. That does not necessarily mean the official must be constitutionally insulated from the President.

Classification: Controlling precedent.

***L. Collins v. Yellen*, 594 U.S. 220 (2021)**

1. Facts

The Federal Housing Finance Agency (FHFA) was headed by a single Director appointed by the President and confirmed by the Senate. The statute limited the President's removal authority to cases involving "inefficiency, neglect of duty, or malfeasance in office."

Shareholders of Fannie Mae and Freddie Mac challenged agency actions, arguing in part that the removal restriction violated Article II.

2. Constitutional question

Did the statutory restriction on the President's removal of the FHFA Director violate the Constitution, and what consequence followed for agency actions taken while the Director was protected by the unconstitutional restriction?

3. Holding

The Court held that the removal restriction was unconstitutional.

But it rejected the proposition that every agency action taken under an unconstitutional removal restriction was automatically void.

4. Reasoning

The Court relied heavily on *Seila Law*.

The FHFA Director possessed substantial executive authority and was the sole head of the agency. The statutory restriction therefore improperly limited presidential control.

The Court nevertheless distinguished the **constitutional defect in the removal provision** from the **validity of particular agency actions**.

The mere existence of an unconstitutional removal restriction did not automatically establish that every action taken by the agency was unlawful.

5. Scope and limitations

This distinction is extremely important for executive ethics enforcement.

There are at least two separate constitutional questions:

1. **Was the enforcement officer's statutory insulation from presidential removal constitutional?**
2. **If not, what remedy follows for actions the officer took?**

Collins establishes that the answer to the second question is not necessarily "invalidate everything."

The claimant generally must establish a sufficient connection between the unconstitutional removal restriction and the challenged governmental action.

6. Relevance to executive ethics regulation

Suppose Congress created an ethics official with an unconstitutional removal restriction.

Under *Collins*, it would not automatically follow that every ethics determination made by that officer was legally void.

The constitutional defect would instead concern the **institutional structure**.

This distinction could become particularly important in litigation challenging executive ethics enforcement.

A court could conclude:

- the ethics official was improperly insulated;
- the removal restriction must be severed;
- but prior enforcement actions remain valid absent a sufficient showing of harm.

This makes *Collins* particularly important for determining remedies.

Classification: Controlling precedent.

M. The Modern Doctrinal Trajectory

The cases from *Morrison* through *Collins* reveal a significant evolution.

Morrison

Allowed a carefully structured exception to ordinary presidential control.

Edmond

Emphasized that inferior officers must remain subject to supervision.

Free Enterprise Fund

Rejected multiple layers of removal protection.

Lucia

Emphasized constitutional appointment procedures for officials exercising significant authority.

Seila Law

Reasserted presidential control over a single executive officer exercising substantial authority.

Collins

Confirmed the constitutional importance of removal authority while distinguishing structural invalidity from the validity of individual agency actions.

Trump v. Slaughter

The 2026 decision represents the most significant development in this sequence. The Court expressly overruled *Humphrey's Executor* insofar as it authorized congressional removal protections for officers exercising executive power. The Court reasoned that Congress cannot "foist" an independent executive agency upon the President and thereby deprive him of executive power vested by Article II.

The practical consequence is that the constitutional starting point for executive ethics enforcement has changed substantially.

The strongest version of the modern doctrine is now:

Congress may establish the substantive legal obligations governing executive officers, but officers exercising executive power generally must remain subject to presidential control.

That principle does not prevent Congress from establishing ethics rules. It does, however, constrain **institutional independence in the enforcement of those rules**.

N. Preliminary Application to Executive Ethics Regulation

The cases now permit a preliminary distinction among three different forms of congressional ethics regulation.

1. Substantive regulation of conduct

Examples include:

- prohibiting financial conflicts;
- requiring financial disclosure;
- regulating gifts;
- imposing recusal obligations;
- restricting outside employment;
- establishing post-employment rules.

These provisions ordinarily regulate **conduct**, not the allocation of executive power.

Their constitutional foundation is correspondingly strong.

2. Administrative enforcement within the Executive Branch

Congress may establish procedures through which executive agencies implement those standards.

The constitutional inquiry becomes more substantial where Congress specifies:

- who investigates;
- who adjudicates;
- who imposes discipline;
- who controls the enforcement official;
- whether the official is removable.

But an enforcement structure embedded within the ordinary presidential hierarchy is considerably easier to reconcile with Article II than an independent structure exercising substantial executive authority.

3. Independent enforcement outside presidential control

This presents the greatest constitutional difficulty.

After *Trump v. Slaughter*, an ethics commission cannot simply be analogized to the FTC of *Humphrey's Executor* and presumed constitutionally independent.

The critical question is whether it exercises **executive power**.

If it does, the President's removal and supervisory authority become constitutionally significant.

If it does not exercise governmental power, a different analysis may apply. *Trump v. Slaughter* itself preserved the possibility that Congress may create genuinely "branchless" entities performing functions associated with Congress's own constitutional responsibilities, while emphasizing that Congress may not impose such an entity upon the President to execute federal law.

That distinction will become particularly important when the memorandum later addresses congressional ethics offices, inspectors general, independent counsel mechanisms, and other forms of institutional accountability.

O. Interim Doctrinal Rule

The modern Supreme Court cases support the following provisional rule:

Congress has substantial authority to prescribe ethical standards for executive officials, but the Constitution places substantially greater restrictions on Congress when it attempts to control the administration or enforcement of those standards. Where an ethics official exercises executive power, current doctrine strongly favors presidential appointment, supervision, and removal authority.

This proposition should not yet be treated as the memorandum's ultimate conclusion. Several questions remain.

First, the Court has not squarely decided whether **ethics enforcement itself** constitutes executive power in every circumstance.

Second, the Court has not comprehensively defined the constitutional status of all forms of independent ethics administration following *Trump v. Slaughter*.

Third, *Morrison* remains formally relevant to inferior officers, although its doctrinal space has narrowed.

Fourth, the distinction between executive enforcement and congressional oversight remains essential. *Bowsher* prohibits Congress from executing federal law, but Congress retains significant investigative and legislative authority.

Finally, presidential ethics regulation raises a separate and considerably harder set of questions because the President is himself a constitutional officer rather than a statutory executive employee.

Those issues require the memorandum to turn next to **congressional oversight, executive privilege, presidential immunity, and the 2024 presidential-immunity decision in *Trump v. United States*** before drawing the final constitutional boundaries.

VIII. Congressional Oversight, Executive Privilege, and Presidential Immunity

A. Congressional Investigatory Authority

Congress's investigative authority is not expressly stated in a single constitutional provision. It is understood as an implied incident of legislative power.

The Supreme Court has long recognized that Congress may investigate matters relevant to legislation and the administration of laws. The authority is broad, but it is not unlimited.

The principal constitutional limitations are:

1. Congress must possess a legitimate legislative purpose;
2. the investigation must be connected to a subject on which Congress may legislate;
3. Congress may not exercise powers assigned exclusively to another branch;
4. congressional demands for information may be constrained by constitutional privileges.

These principles are especially important for executive ethics.

Congress may investigate:

- financial conflicts involving executive officials;
- implementation of federal ethics laws;
- agency compliance;
- administration of statutory ethics programs;
- alleged misconduct bearing upon potential legislation;
- failures of executive agencies to enforce ethics requirements.

But an investigation cannot simply become a substitute for executive enforcement.

The constitutional distinction is therefore:

Congress may investigate executive ethics in order to legislate, oversee implementation, and protect its institutional prerogatives; it may not convert the investigation into an exercise of executive power.

That distinction becomes particularly important where Congress investigates a particular executive officer rather than a general policy problem.

B. *McGrain v. Daugherty*, 273 U.S. 135 (1927)

1. Facts

The Senate investigated the Department of Justice's handling of the Teapot Dome scandal. The Senate authorized an investigation and subpoenaed Mally Daugherty, brother of Attorney General Harry Daugherty, to testify concerning the Department's administration.

Daugherty refused to appear, and the Senate sought to enforce the subpoena.

2. Constitutional question

Did Congress possess constitutional authority to compel testimony as part of an investigation concerning the administration of federal law?

3. Holding

Yes.

The Court recognized congressional investigative power as an implied component of legislative authority.

4. Reasoning

The Court reasoned that legislative bodies could not effectively legislate without gathering information about existing conditions and the administration of federal programs.

Investigation was therefore treated as an auxiliary function of legislation.

The Court emphasized that the Senate's investigation was connected to a legitimate legislative purpose: determining whether legislation concerning the Department of Justice was necessary.

5. Scope and limitations

McGrain does not recognize unlimited congressional investigative power.

The investigation must relate to a legitimate legislative function. Congress cannot investigate merely because it wishes to exercise general governmental supervision over private or executive conduct.

That distinction is important for ethics oversight.

An investigation into whether federal ethics statutes are adequate is plainly connected to legislation.

An investigation whose sole purpose is to determine whether an individual executive official should be punished in a particular case is constitutionally more problematic.

6. Relevance

McGrain supports congressional authority to investigate executive ethics as a subject of legislation and oversight.

It does **not** give Congress executive enforcement authority.

Classification: Controlling precedent.

C. Watkins v. United States, 354 U.S. 178 (1957)

Watkins supplies an important counterweight to *McGrain*.

The Court held that congressional investigative authority is broad but subject to constitutional limits. A witness cannot be compelled to answer questions outside the legitimate scope of the congressional inquiry.

The Court emphasized that Congress's investigative authority derives from legislative power and therefore cannot be transformed into a general power to conduct investigations unrelated to legislation.

For executive ethics regulation, *Watkins* reinforces the principle that Congress must identify a legitimate legislative or oversight purpose.

A congressional ethics investigation therefore becomes constitutionally vulnerable when it is merely punitive or prosecutorial rather than legislative.

Classification: Controlling precedent.

D. Executive Privilege

1. Constitutional foundation

Executive privilege is not expressly named in the Constitution.

Nevertheless, *United States v. Nixon* recognized a constitutionally based presidential interest in confidentiality arising from the separation of powers and the effective functioning of the Presidency.

The privilege is therefore best understood as an implied constitutional protection rather than an absolute presidential prerogative.

This produces an important asymmetry.

Congress possesses constitutional authority to obtain information relevant to legislation.

The President possesses constitutional interests in protecting certain information necessary to perform Article II functions.

Neither principle automatically defeats the other.

E. *Trump v. Mazars USA, LLP*, 591 U.S. 848 (2020)

1. Facts

The House Committee on Oversight and Reform subpoenaed President Trump's accounting firm for financial records. Other congressional committees sought financial information from Trump's banks.

Trump challenged the subpoenas, asserting that Congress lacked sufficient legislative justification and that the subpoenas impermissibly burdened the Presidency.

2. Constitutional question

What standard governs congressional subpoenas seeking information concerning a sitting President?

3. Holding

The Court rejected both extremes.

Congress did not possess an unlimited authority to subpoena presidential information merely because the information might conceivably assist legislation. But the President likewise did not possess absolute immunity from congressional demands for information.

The Court remanded for application of a more demanding separation-of-powers analysis.

4. Reasoning

The Court identified four considerations relevant to congressional subpoenas directed at the President:

1. whether the asserted legislative purpose warrants the significant step of involving the President and his papers;
2. whether the subpoena is no broader than necessary to serve the legislative purpose;
3. whether Congress has offered detailed information about why the subpoena is necessary;
4. whether the subpoena burdens the President in a manner disproportionate to the legislative need.

The Court's approach is significant because it rejects a simplistic application of ordinary congressional subpoena principles to the President.

5. Scope and limitations

Mazars concerns congressional subpoenas for presidential information.

It does not establish a general rule that Congress cannot regulate presidential conduct.

Nor does it establish that every ethics-related disclosure requirement must satisfy the four-factor framework.

The case is most relevant when ethics oversight seeks information belonging to or controlled by the President personally.

6. Relevance to executive ethics

The case establishes an important principle:

Congress's legitimate interest in executive ethics does not eliminate the special constitutional status of presidential information.

A statute requiring ordinary financial disclosure from executive officials presents a much easier constitutional question than a demand for internal presidential communications concerning a disputed ethics issue.

This distinction should be maintained carefully.

Classification: Controlling precedent concerning congressional subpoenas directed at the President.

F. *Trump v. United States*, 603 U.S. 593 (2024)

1. Facts

Former President Donald Trump was federally indicted for conduct arising from his efforts to challenge the results of the 2020 presidential election.

Trump argued that a former President enjoys immunity from criminal prosecution for official presidential acts.

2. Constitutional question

To what extent does a former President possess immunity from criminal prosecution for official acts undertaken while President?

3. Holding

The Court held:

1. a former President has **absolute immunity** for acts within his exclusive constitutional authority;
2. a former President is entitled to at least **presumptive immunity** for other official acts;
3. a former President has **no immunity** for unofficial acts.

4. Reasoning

The Court's reasoning rested on separation of powers.

The Presidency is a constitutional office with responsibilities that cannot function effectively if every official decision potentially exposes the President to later criminal prosecution.

The Court therefore distinguished between official and unofficial conduct.

The Court also rejected the proposition that the President is "above the law." Immunity is instead a structural protection designed to preserve the functioning of the constitutional office.

5. Scope and limitations

This distinction is essential for the ethics question.

Trump is a **criminal immunity case**.

It does not hold that:

- Congress may not enact ethics laws applicable to the President;
- the President is exempt from every federal ethics statute;
- Congress lacks authority to require presidential financial disclosures;
- Congress cannot investigate presidential conduct;
- the President can disregard statutes merely because the President characterizes conduct as official.

The decision addresses criminal prosecution, not the entire universe of legislative regulation.

6. Relevance to congressional ethics regulation

Nevertheless, *Trump* establishes an important constitutional constraint.

Suppose Congress enacted an ethics rule that effectively made the President's exercise of a core Article II power contingent upon the approval of another official.

The problem would not necessarily be that the rule is "ethics legislation." It would be that Congress had attempted to place a constitutionally assigned presidential function under another actor's control.

Similarly, an ethics statute cannot necessarily transform an otherwise protected official presidential act into a criminal offense simply by attaching an ethics label to it.

The case therefore reinforces a fundamental distinction:

Congress has considerably greater authority to regulate the President's peripheral financial and administrative conduct than to regulate the President's exercise of core constitutional powers.

That proposition is strongly supported by *Trump*, although its precise application to civil ethics statutes remains unresolved.

Classification: Controlling precedent concerning presidential criminal immunity; persuasive/structurally relevant concerning statutory ethics regulation.

G. The President's Unique Constitutional Status

The preceding authorities permit a useful distinction between **regulating the President** and **regulating presidential administration**.

Presidential administration

Congress generally has substantial authority to regulate:

- executive agencies;
- officers;
- employees;
- financial conflicts;
- government procurement;
- gifts;
- financial disclosure;
- personnel conduct.

The President personally

The analysis becomes substantially more complicated where Congress attempts to regulate:

- the President's exercise of constitutional authority;
- presidential communications;
- presidential appointments;
- presidential removal decisions;
- pardons;
- vetoes;
- military command;
- diplomatic recognition;
- other core Article II functions.

The Constitution's allocation of those powers means that Congress cannot simply characterize the regulation of presidential decision-making as ordinary "ethics regulation."

The controlling principle is functional:

The closer the regulated conduct is to a power textually and exclusively assigned to the President, the stronger the constitutional objection to congressional regulation.

Conversely:

The further the regulated conduct is from core presidential functions—and the more it resembles generally applicable regulation of personal financial or administrative behavior—the stronger Congress's constitutional authority becomes.

This distinction will be central to the final synthesis.

H. The Take Care Clause

The Take Care Clause provides an important conceptual bridge between congressional ethics regulation and presidential authority.

Article II requires that the President "take Care that the Laws be faithfully executed."

At first glance, the Clause might seem to give Congress a straightforward answer: Congress establishes ethics laws and the President must enforce them.

That is substantially correct, but incomplete.

The Clause simultaneously creates a **presidential duty** and helps define the President's **constitutional control over execution**.

The President is responsible for faithful execution of federal law. Congress therefore cannot structure executive ethics administration in a way that deprives the President of all meaningful ability to supervise the officials charged with carrying out those laws.

This creates a constitutional paradox only in appearance:

Congress's ethics laws constrain the President's discretion, while Article II gives the President authority to supervise execution of those laws.

Both propositions can be true simultaneously.

Congress determines the law.

The President executes it.

The President cannot disregard the law simply because the President disagrees with it.

But Congress cannot ordinarily execute the law itself simply because it enacted it.

This is the central separation-of-powers equilibrium.

I. The Unitary Executive Theory

The term "unitary executive" describes a family of constitutional arguments rather than a single judicially defined rule.

At its strongest, the theory maintains that:

1. Article II vests executive power in the President;
2. all executive officers exercising federal executive power therefore operate under presidential supervision;
3. Congress cannot create executive officers who are constitutionally independent of presidential control;
4. presidential removal authority is a principal mechanism of accountability.

The Supreme Court's modern decisions have adopted important components of this theory without necessarily endorsing every academic formulation of "unitary executive" theory.

Free Enterprise Fund, *Seila Law*, *Collins*, and especially *Trump v. Slaughter* provide powerful evidence that the Court now treats presidential supervision as a constitutional requirement for officers exercising executive power.

The 2026 decision is particularly clear. The Court explained that Article II establishes a hierarchy headed by the President and that executive officers remain subject to presidential superintendence. It expressly rejected the idea that Congress can create an "independent" agency exercising executive power and thereby deprive the President of authority constitutionally vested in him.

But an important distinction remains.

The unitary executive does not imply unlimited presidential discretion.

Congress retains legislative authority.

Congress can:

- establish legal rules;
- define crimes;
- establish eligibility requirements;
- regulate government spending;

- establish executive offices;
- impose ethical restrictions;
- require disclosure;
- condition federal employment on compliance with law.

The President's obligation is to execute those laws faithfully.

The unitary executive principle therefore addresses **who executes the law**, not whether Congress may make the law.

J. Ethics Regulation and Executive Privilege

Ethics legislation can implicate executive privilege in at least three ways.

1. Financial disclosure

Generally the least problematic.

Financial information concerning the President or executive employees is ordinarily less connected to confidential presidential deliberation.

2. Investigative communications

More difficult.

An ethics investigation may require communications between executive officials concerning a potential conflict or alleged misconduct.

Some communications may fall within recognized confidentiality interests.

3. Presidential deliberations

Most difficult.

Where an ethics investigation requires disclosure of advice provided directly to the President concerning the exercise of constitutional authority, executive privilege and separation-of-powers concerns become much stronger.

The constitutional analysis therefore cannot simply classify information as "ethics-related."

The relevant question is **what constitutional interest the information implicates**.

K. Ethics Regulation and Presidential Immunity

The same analytical distinction applies to presidential immunity.

A rule regulating **personal conduct** is constitutionally different from one regulating **official presidential action**.

The Supreme Court's 2024 decision makes this distinction explicit in the criminal context.

The unresolved issue is how far the principle extends outside criminal prosecution.

There are at least four possible categories:

Conduct	Constitutional concern
Personal financial activity unrelated to presidential duties	Relatively low
Administrative conduct connected to presidential office	Moderate
Official executive decisions involving statutory authority	Significant
Core exclusive Article II powers	Highest

This is not a categorical rule supplied directly by the Court for civil ethics regulation. It is an analytical framework derived from the Court's separation-of-powers and immunity decisions.

Accordingly, it should be treated as **constitutional synthesis rather than settled holding**.

L. The Constitutional Status of Ethics Enforcement

The preceding authorities reveal an important distinction that should govern the remainder of the memorandum.

1. Rulemaking

Congress's authority is strongest.

Congress may generally establish:

- prohibited conduct;
- disclosure requirements;

- financial restrictions;
- conflict-of-interest rules;
- standards for federal employment.

2. Administration

Congress retains substantial authority but must respect Article II.

Congress can create administrative procedures, but officers exercising executive authority must generally remain within the presidential chain of command.

3. Investigation

Congress possesses significant authority where investigation serves a legislative purpose.

But Congress cannot transform investigation into executive prosecution or adjudication.

4. Adjudication

Constitutional difficulty increases substantially when an ethics body exercises binding adjudicatory power.

The Appointments Clause and Article II become relevant.

5. Enforcement

The strongest Article II concerns arise when an ethics body exercises coercive executive authority while being insulated from presidential control.

This is where *Bowsher*, *Free Enterprise Fund*, *Seila Law*, *Collins*, and *Trump v. Slaughter* converge.

M. A Particularly Important Distinction: Independence vs. Impartiality

One of the most important conclusions emerging from the modern cases is that **institutional independence and professional impartiality are not constitutionally synonymous**.

Congress may reasonably conclude that ethical enforcement should be:

- objective;
- professionally administered;
- insulated from partisan pressure;

- consistent;
- transparent;
- procedurally regular.

But those goals do not necessarily require constitutional independence from presidential control.

Indeed, after *Trump v. Slaughter*, the Constitution may require presidential control where an ethics official exercises executive power.

This does not mean that the President must personally decide every ethics question.

The President may delegate authority to subordinate officials.

The constitutional requirement is instead that the officials exercising executive power remain situated within a chain of authority ultimately accountable to the President.

This distinction provides a much more constitutionally durable way of conceptualizing executive ethics:

Impartial administration may be constitutionally permissible—even desirable—without requiring removal-proof executive officials.

N. Unresolved Constitutional Questions

At this stage, several important questions remain unsettled.

1. Can Congress directly regulate the President's personal financial conduct?

The Constitution does not provide a categorical answer.

The President's unique status creates Article II concerns, but neither *Nixon* nor *Trump* establishes a blanket exemption from generally applicable law.

2. Can Congress require the President to comply with ordinary financial disclosure rules?

This appears more constitutionally defensible than regulation of core presidential powers, but the Supreme Court has not established a comprehensive test specifically governing presidential financial-disclosure statutes.

3. Can Congress establish an independent executive ethics commission?

After *Trump v. Slaughter*, the answer depends heavily upon what authority the commission actually exercises.

A body performing advisory or congressional functions is constitutionally different from one executing federal law.

4. Can Congress create an ethics official removable only for cause?

For an official exercising executive power, *Trump v. Slaughter* makes such a provision constitutionally suspect. The precise status of inferior officers under *Morrison* remains less certain.

5. Can Congress authorize an ethics body to compel the President to recuse?

This presents a much more difficult question than ordinary regulation of executive employees because recusal can directly affect presidential exercise of constitutional authority.

No Supreme Court decision squarely resolves the question.

6. Can Congress impose civil penalties upon the President for ethics violations?

The Court has not established a comprehensive doctrine addressing congressional civil penalties against a sitting President for statutory ethics violations.

The answer would likely depend heavily upon the nature of the underlying conduct and the mechanism of enforcement.

7. Can Congress criminalize violations of presidential ethics requirements?

Trump v. United States substantially complicates this question.

A statute cannot necessarily overcome constitutional immunity merely by defining official conduct as an ethics violation. But the precise boundary between permissible criminal regulation and protected official presidential conduct remains unsettled.

O. The Central Constitutional Distinction

The cases collectively suggest that the question "May Congress regulate executive ethics?" is actually composed of **three separate constitutional questions**:

Question 1 — May Congress establish the ethical rule?

Usually yes.

Article I, the Necessary and Proper Clause, the Spending Clause, and Congress's authority over federal offices provide substantial authority.

Question 2 — May Congress require executive officials to follow the rule?

Generally yes.

Congress may establish statutory conditions governing the conduct of federal officials.

Question 3 — Who decides whether the rule has been violated, and who enforces the consequence?

This is where Article II becomes decisive.

The Constitution does not permit Congress to transform legislative oversight into direct execution of federal law. And after *Trump v. Slaughter*, Congress's ability to insulate executive officers from presidential control is substantially narrower than it was under the traditional understanding of *Humphrey's Executor*.

Thus, the constitutional problem is generally **not the existence of executive ethics law**.

It is the possibility that Congress could use ethics law to restructure the Executive Branch itself.

P. The Appropriations Clause as a Source of Congressional Leverage

The Appropriations Clause provides Congress with a substantial constitutional mechanism for influencing executive administration. Article I, § 9, cl. 7 provides:

"No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law."

The Clause gives Congress significant control over federal expenditures. It does **not**, however, convert the appropriations power into an unrestricted authority to direct executive administration.

The constitutional question is therefore not simply whether Congress may attach conditions to federal funding. It is whether the condition is being used to legislate within Congress's constitutional sphere or instead to assume executive control.

1. Congress's broad appropriations authority

The Supreme Court has recognized that Congress possesses considerable discretion in determining how federal money will be spent.

That authority can support ethics-related requirements concerning:

- the availability of appropriated funds;
- agency compliance with statutory ethics requirements;

- financial controls;
- reporting conditions;
- auditing;
- disclosure;
- administrative procedures.

The appropriations power is particularly relevant because Congress may use funding conditions to ensure that agencies comply with statutory requirements without necessarily exercising direct control over executive officers.

2. The constitutional limitation

The key limitation is that an appropriations restriction cannot accomplish indirectly what Congress could not accomplish directly.

If Congress lacks constitutional authority to command the President to take a particular executive action, simply attaching a funding condition to that command does not necessarily cure the problem.

The Appropriations Clause therefore should be understood as a **source of legislative leverage**, not an independent power to administer the Executive Branch.

3. *United States v. Lovett*, 328 U.S. 303 (1946)

Lovett provides a useful illustration of the limits of congressional control over executive personnel.

Congress enacted a provision prohibiting payment of salaries to three named federal employees whom Congress considered subversive. The Supreme Court held that the provision violated the Bill of Attainder Clause.

The case is not principally an Article II decision, but it illustrates an important point for ethics legislation:

Congress's appropriations power remains subject to other constitutional limitations.

Congress cannot evade constitutional protections simply by characterizing an operative requirement as a restriction on spending.

The principle is relevant to ethics legislation because Congress cannot necessarily use appropriations to impose individualized punishment upon executive officials where the Constitution assigns adjudicatory or disciplinary authority elsewhere.

Classification: Controlling precedent on the Bill of Attainder Clause; persuasive structural authority regarding the limits of appropriations-based personnel regulation.

Q. Train v. City of New York, 420 U.S. 35 (1975)

Although not an Article II ethics case, *Train* illustrates the constitutional and statutory distinction between Congress's appropriation of money and the Executive's obligation to execute enacted statutes.

Congress enacted an environmental statute requiring the distribution of certain funds to state and local governments. President Nixon attempted to withhold portions of the appropriated money.

The Court held that the President could not simply refuse to spend funds where Congress had mandated expenditure.

The significance for executive ethics is structural:

The President's control over execution does not include a general power to disregard statutory commands.

This is the other side of the Take Care Clause.

A strong conception of presidential control cannot become a presidential power to nullify Congress's substantive legislation.

Accordingly:

- Congress establishes the legal rule;
- the President executes it;
- the President retains control over executive personnel;
- neither branch may simply assume the other's constitutional function.

That equilibrium is essential to understanding the constitutional limits of ethics regulation.

R. Congress's Authority to Create and Structure Executive Offices

Congress's authority to establish executive offices derives principally from Article I legislative power, together with the Necessary and Proper Clause.

Congress routinely creates:

- departments;

- agencies;
- offices;
- statutory positions;
- administrative procedures;
- qualifications;
- reporting requirements;
- jurisdictional limits.

The Supreme Court has never held that the President possesses a general prerogative to determine the entire institutional structure of the Executive Branch independently of Congress.

The constitutional conflict arises when congressional structuring begins to interfere with **presidential control over officers exercising executive power**.

This creates an important distinction.

Congress may generally determine:

- whether an office exists;
- its statutory mission;
- its jurisdiction;
- qualifications;
- duties;
- procedures;
- reporting requirements;
- appropriated resources.

Congress generally may not determine:

- who exercises executive power outside the Appointments Clause;
- whether an executive officer remains subject to presidential supervision;
- whether the President may remove an executive officer where Article II requires presidential control;
- whether Congress itself will execute the officer's statutory duties.

This division is strongly supported by *Myers*, *Bowsher*, *Free Enterprise Fund*, *Seila Law*, *Collins*, and the 2026 decision in *Trump v. Slaughter*.

***S. Public Citizen v. Department of Justice*, 491 U.S. 440 (1989)**

Public Citizen concerned the Federal Advisory Committee Act and the role of the American Bar Association in the process of evaluating potential judicial nominees.

Although the case did not directly concern executive ethics, it demonstrates that congressional regulation of executive processes can raise constitutional questions when the statutory mechanism affects presidential appointment authority.

The Court avoided unnecessarily broad constitutional conclusions by interpreting the statute narrowly.

This illustrates a broader principle relevant to ethics regulation:

Where a statute can reasonably be interpreted in a manner that avoids serious constitutional conflict with Article II, courts may prefer that interpretation.

For drafting purposes, this reinforces the importance of precise statutory boundaries.

A provision that can be interpreted as regulating ordinary executive administration is constitutionally easier to defend than one that can reasonably be read as controlling presidential appointment, removal, or core constitutional judgment.

Classification: Controlling precedent on statutory interpretation; persuasive authority concerning constitutional avoidance in executive-structure disputes.

T. Ethics Regulation and the Appointments Clause

Congressional ethics legislation can implicate the Appointments Clause in two fundamentally different ways.

1. Qualifications of regulated officers

Congress generally possesses substantial authority to establish statutory qualifications and duties for offices it creates.

Ethics requirements may consequently be conditions attached to holding or exercising a statutory office.

But Congress cannot impose qualifications inconsistent with constitutional requirements.

For example, Congress cannot use statutory ethics qualifications to displace the President's constitutional appointment power or Senate confirmation where the Constitution requires it.

2. Appointment of ethics officials

This is more constitutionally sensitive.

If an ethics official exercises significant authority pursuant to federal law, *Lucia* indicates that the official may be an "Officer of the United States."

The Appointments Clause then requires constitutionally valid appointment.

The critical question is therefore functional:

Does the ethics official exercise significant governmental authority?

An employee who merely advises an agency head presents one problem.

An official who can:

- compel testimony;
- issue binding orders;
- impose sanctions;
- adjudicate violations;
- prosecute federal offenses;

presents another.

The more significant the authority, the stronger the argument that the position is an Article II office requiring constitutionally proper appointment.

U. Ethics Regulation and Removal Authority

The modern doctrine makes removal the most significant structural limitation on Congress's creation of executive ethics institutions.

The relevant sequence is:

Myers → Morrison → Free Enterprise Fund → Seila Law → Collins → Trump v. Slaughter.

The trajectory is unmistakable.

Myers

Presidential removal authority is constitutionally important.

Morrison

A narrow exception may exist for inferior officers with limited duties and jurisdiction.

Free Enterprise Fund

Multiple levels of removal protection are unconstitutional.

Seila Law

A single executive officer exercising substantial authority cannot ordinarily be insulated from presidential removal.

Collins

The removal restriction itself may be unconstitutional even where agency actions remain valid.

Trump v. Slaughter

The *Humphrey's Executor* model of removal-protected officers exercising executive power is no longer constitutionally available.

The result is a much stronger presumption:

Congress may regulate the conduct of executive officers, but it generally cannot make the officers responsible for executing those regulations independent of presidential control.

This does not mean every ethics official must be removable at the President's personal discretion on every occasion. Delegated executive authority remains possible.

The constitutional requirement is **presidential accountability**, not necessarily personal presidential involvement in each administrative decision.

V. Ethics Regulation and Executive Privilege

The constitutional relationship between ethics regulation and executive privilege can be separated into three levels.

Level 1 — Ordinary executive records

Congress generally possesses strong authority to request information concerning implementation of federal law.

Examples include:

- agency ethics reports;

- aggregate disclosure statistics;
- disciplinary statistics;
- administrative procedures;
- agency-level financial controls.

The constitutional burden is comparatively low.

Level 2 — Individual executive communications

The constitutional analysis becomes more complicated when Congress requests communications concerning an individual official's alleged misconduct.

Executive privilege may apply depending upon the nature of the communication and the governmental interests involved.

Level 3 — Presidential communications

The constitutional interest is strongest when the information concerns presidential deliberation or core Article II functions.

Mazars establishes that congressional demands for presidential information require heightened attention to separation-of-powers concerns.

Nixon establishes that presidential confidentiality is constitutionally protected but not absolute.

Together, these cases suggest that an ethics statute requiring disclosure should not be treated as automatically eliminating executive privilege.

W. Ethics Regulation and Presidential Immunity

The constitutional analysis is still more difficult when Congress seeks to regulate the President directly.

The critical distinction is between:

Unofficial presidential conduct

Congress's authority is comparatively stronger.

The President does not receive a general constitutional license to engage in private conduct simply because he holds office.

Official conduct

The analysis becomes more difficult.

The President's official acts may implicate constitutional immunity and separation-of-powers principles.

Core constitutional acts

The constitutional protection is strongest.

Under *Trump v. United States*, a former President possesses absolute criminal immunity for conduct within the President's exclusive constitutional authority.

This does not mean that Congress cannot regulate the President's personal financial conduct.

It means that Congress cannot assume that ordinary statutory enforcement mechanisms can be applied to the President without regard to the constitutional nature of the underlying act.

X. The President and Generally Applicable Laws

A particularly important unresolved question is whether the President may constitutionally be subjected to a generally applicable federal ethics statute.

There is no categorical Supreme Court holding that "the President is exempt from all generally applicable federal ethics laws."

Indeed, several constitutional principles point in the opposite direction.

The President:

- must comply with constitutional restrictions;
- must take care that laws are faithfully executed;
- is subject to impeachment;
- may be investigated by Congress within constitutional limits;
- may be subject to judicial process under circumstances recognized by the Court;
- lacks immunity for unofficial conduct.

At the same time, the President's constitutional status means that Congress cannot assume that a generally applicable statute applies in precisely the same manner to the President as to a career employee.

The best-supported constitutional approach is therefore **functional rather than categorical**.

The relevant inquiry should ask:

1. What conduct does the law regulate?
2. Is the conduct official or unofficial?
3. If official, is it within an exclusive presidential power?
4. What enforcement mechanism does Congress establish?
5. Who determines whether a violation occurred?
6. What remedy follows?
7. Does enforcement interfere with presidential functions?
8. Does the statute preserve presidential supervision of executive personnel?

This is an area in which **constitutional uncertainty is genuine**.

Y. Congressional Ethics Regulation and Impeachment

Impeachment deserves separate treatment because it provides Congress with an express constitutional mechanism for addressing misconduct by high executive officials.

Article I gives the House the sole power of impeachment, while the Senate has the sole power to try impeachments. Article II specifies "Treason, Bribery, or other high Crimes and Misdemeanors" as grounds for removal through impeachment.

The existence of impeachment has two constitutional implications.

First, Congress unquestionably possesses some authority to address serious misconduct by executive officials.

Second, ordinary ethics statutes cannot be assumed to replace or duplicate the constitutional impeachment process whenever Congress wishes.

Impeachment is constitutionally distinct from ordinary statutory enforcement.

The House does not need to demonstrate that an impeachable offense violates an ordinary federal ethics statute.

Conversely, Congress's authority to enact ethics statutes does not necessarily mean that every violation constitutes an impeachable offense.

The two mechanisms operate within different constitutional structures.

This distinction is particularly important with respect to the President.

Congress may possess authority to establish ethical standards without possessing authority to impose an ordinary statutory disciplinary penalty on the President equivalent to the penalties applicable to subordinate employees.

The constitutional remedy for serious presidential misconduct may instead lie principally in the impeachment process.

That proposition is stronger as a matter of constitutional structure than as a categorical rule of statutory interpretation.

Z. Separation of Powers and Ethical Enforcement

The preceding cases permit a useful four-part model.

1. Legislative function

Congress:

- identifies prohibited conduct;
- defines statutory duties;
- establishes disclosure requirements;
- establishes institutional structures;
- appropriates funds.

2. Executive function

The Executive:

- administers the statutory scheme;
- investigates violations within executive authority;
- makes enforcement decisions;
- disciplines subordinate personnel;
- executes statutory penalties.

3. Judicial function

The Judiciary:

- interprets statutes;
- resolves constitutional challenges;
- reviews executive action where judicial review is authorized;
- protects constitutional rights.

4. Congressional oversight

Congress:

- investigates;
- receives information;
- audits implementation;
- conducts hearings;
- evaluates agency performance;
- considers amendments.

The constitutional problem arises when one branch crosses from its legitimate function into another's.

The most relevant prohibitions are:

Congress may not execute.

Bowsher.

The President may not disregard statutes.

Train and the Take Care Clause.

The Executive cannot claim absolute confidentiality against legitimate judicial process.

Nixon.

Congress cannot insulate executive officers from presidential control merely by creating an "independent" agency.

Free Enterprise Fund, Seila Law, Collins, and Trump v. Slaughter.

These propositions collectively define the constitutional perimeter of executive ethics regulation.

AA. Controlling Doctrine, Persuasive Authority, and Unresolved Questions

The memorandum's requested distinction can now be stated explicitly.

1. Controlling constitutional doctrine

The following propositions are strongly supported by controlling Supreme Court precedent:

A. Congress possesses substantial legislative authority over executive administration.

Congress may establish offices, duties, standards, procedures, and appropriations.

B. Congress may investigate executive administration for legitimate legislative purposes.

McGrain and *Watkins* establish the basic principle.

C. Congress may not itself execute federal law.

Bowsher establishes the central structural rule.

D. The President possesses constitutionally significant authority to supervise executive officers.

Myers, *Free Enterprise Fund*, *Seila Law*, and *Collins* establish this proposition.

E. Congress cannot generally insulate officers exercising executive power from presidential removal.

This proposition is substantially reinforced by *Trump v. Slaughter*.

F. Executive privilege exists but is qualified.

United States v. Nixon establishes the principle.

G. Congressional demands for presidential information receive heightened separation-of-powers scrutiny.

Mazars establishes the relevant framework.

H. Presidential criminal immunity protects certain official acts.

Trump v. United States establishes absolute immunity for core constitutional acts and presumptive immunity for other official acts, while recognizing no immunity for unofficial conduct.

I. Officers exercising significant federal authority must be appointed consistent with the Appointments Clause.

Lucia and *Edmond* establish the relevant principles.

AB. Persuasive or Historically Important Precedent

Some cases remain highly relevant but cannot be treated as current statements of the complete doctrine.

Humphrey's Executor

Historically central but **overruled in relevant part by *Trump v. Slaughter***.

Morrison

Still formally valid, but increasingly narrow in light of subsequent presidential-control cases.

Nixon v. GSA

Still controlling, but its functional balancing approach should be read alongside the modern Court's increasingly formal Article II jurisprudence.

Bowsher

Controlling on congressional control over execution, but not a complete answer to every form of congressional oversight.

AC. Unresolved Constitutional Questions

The following questions remain materially unsettled:

1. Presidential financial disclosure

The Supreme Court has not squarely established the constitutional boundaries of a comprehensive statutory financial-disclosure regime applicable to a sitting President.

2. Direct presidential conflict-of-interest rules

It remains unclear precisely how far Congress can go in imposing substantive conflict-of-interest restrictions directly upon the President.

3. Presidential recusal

The constitutional status of a statutory mechanism requiring the President to recuse himself from an official matter remains unresolved.

4. Civil penalties against the President

The Court has not comprehensively resolved whether Congress may impose ordinary statutory civil penalties upon a sitting President for violations of generally applicable ethics laws.

5. Criminal ethics laws

Trump v. United States establishes significant immunity principles but does not resolve every potential application of federal ethics statutes to presidential conduct.

6. Independent ethics commissions

The constitutional status of an independent ethics institution depends heavily on whether it exercises executive power. *Trump v. Slaughter* significantly narrows the available constitutional space, but many institutional arrangements remain untested.

7. Inferior ethics officers

Morrison remains relevant, but the modern Court has not fully articulated the boundaries of congressional removal restrictions for inferior officers performing ethics-related functions.

AD. Scholarly Disagreement

The constitutional literature contains significant disagreement concerning the appropriate balance between congressional regulation and presidential control.

1. Strong unitary-executive position

The strongest unitary-executive view maintains that Article II vests all federal executive power in the President and therefore requires substantial presidential control over every officer exercising executive power.

Under this view, independent executive ethics enforcement is constitutionally suspect whenever it involves coercive execution of federal law.

This position receives substantial support from the modern Supreme Court's removal cases.

2. Functionalist position

A more functionalist approach emphasizes practical governmental interests.

Under this view, Congress should possess some latitude to structure institutions where independence serves important governmental objectives, particularly where the institution's

functions are investigative, adjudicative, or otherwise distinct from ordinary executive administration.

Morrison is the strongest Supreme Court precedent historically associated with this position.

3. Historical-practice approach

Another school emphasizes historical practice.

Under this approach, constitutional meaning is informed by longstanding institutional arrangements in which Congress has created administrative bodies with varying degrees of independence.

The difficulty for this position is that the Supreme Court's 2026 decision in *Trump v. Slaughter* substantially reduces the constitutional weight of the historical *Humphrey's Executor* model.

4. Legislative accountability approach

A separate scholarly argument emphasizes Congress's responsibility to prevent executive self-dealing.

From this perspective, executive ethics regulation is not necessarily an intrusion upon Article II. It can instead be understood as Congress establishing the legal conditions under which public power is exercised.

This argument is strongest when directed toward:

- financial conflicts;
- disclosure;
- gifts;
- procurement;
- employment restrictions;
- administrative procedures.

It becomes weaker when the proposed structure gives Congress or an independent official direct control over executive enforcement.

AE. The Core Constitutional Distinction

The scholarly disagreement can ultimately be reduced to one central question:

Is executive ethics primarily a regulation of conduct or a transfer of executive power?

If Congress is regulating **conduct**, its constitutional authority is generally strong.

If Congress is transferring **executive power** away from presidentially accountable officials, Article II concerns become much stronger.

This distinction explains why two provisions that both appear in an ethics statute may receive dramatically different constitutional treatment.

For example:

Conduct rule:

A federal officer may not participate personally and substantially in a matter in which the officer has a prohibited financial interest.

This is quintessentially legislative regulation of conduct.

By contrast:

Institutional control rule:

An independent commission, whose members are removable only for cause, shall determine whether executive officials may participate in particular matters and may issue binding orders controlling their official conduct.

The latter raises much more substantial Article II concerns because it potentially transfers executive authority to officials outside presidential control.

The constitutional problem is therefore not "ethics" itself.

It is **who possesses governmental power and who controls its exercise**.

AF. Constitutional Principles for Congressional Drafting

The following principles synthesize the governing doctrine without recommending any particular legislation.

Principle 1 — Congress may regulate executive conduct.

Article I provides substantial authority to establish legal standards governing federal officials.

Ethics regulation falls comfortably within that authority when it addresses financial conflicts, disclosure, gifts, outside employment, misuse of federal resources, and similar matters.

Principle 2 — The Necessary and Proper Clause reinforces, rather than independently replaces, Article I authority.

Congress may enact laws necessary and proper for carrying its enumerated powers into execution.

The Clause therefore provides substantial support for administrative mechanisms needed to implement federal ethics laws.

But it cannot authorize Congress to exercise powers the Constitution assigns exclusively to another branch.

Principle 3 — Congress may establish executive offices, but must respect Article II.

Congress can create statutory offices and establish their duties.

It cannot use office-creation authority to eliminate constitutionally required presidential supervision.

Principle 4 — Ethical rules and enforcement structures should be analyzed separately.

The constitutionality of a substantive ethics prohibition does not automatically establish the constitutionality of the institution enforcing it.

This distinction is particularly important after *Trump v. Slaughter*.

Principle 5 — Presidential accountability is constitutionally significant.

Where an official exercises executive power, current doctrine strongly favors a chain of presidential appointment, supervision, and removal.

Congress cannot assume that an ethics-related mission makes an executive official constitutionally independent.

Principle 6 — The Appointments Clause applies according to function.

An official exercising significant authority pursuant to federal law may qualify as an officer even if Congress calls the individual an employee, advisor, reviewer, or ethics specialist.

Principle 7 — Congressional oversight must remain oversight.

Congress may investigate executive ethics for legislative purposes.

It cannot convert an investigation into direct executive enforcement.

Principle 8 — The Appropriations Clause supplies substantial leverage but not unlimited executive-control authority.

Congress may condition federal expenditures consistent with its legislative powers.

It cannot use appropriations to evade independent constitutional limitations.

Principle 9 — Executive privilege must be accommodated rather than assumed away.

Ethics legislation does not automatically defeat constitutionally protected presidential confidentiality.

The strength of the privilege depends substantially upon the nature of the information and the governmental function implicated.

Principle 10 — Presidential regulation requires special care.

The President cannot simply be treated as another federal employee.

The constitutional analysis must account for:

- Article II;
- presidential supervision;
- exclusive constitutional powers;
- executive privilege;
- presidential immunity;
- impeachment.

Principle 11 — The closer regulation comes to a core Article II power, the greater the constitutional difficulty.

Congress's authority is strongest concerning peripheral administrative and financial conduct.

It becomes progressively weaker where regulation directly controls:

- appointment;
- removal;

- pardon;
- veto;
- military command;
- diplomatic recognition;
- other exclusive presidential functions.

Principle 12 — Impeachment remains constitutionally distinct from statutory ethics enforcement.

Congress possesses an express constitutional mechanism for addressing serious presidential and executive misconduct.

Ordinary ethics legislation should not be assumed to displace the constitutional impeachment process.

AG. Overall Constitutional Synthesis

The constitutional framework can now be stated in a relatively concise proposition:

Congress possesses broad authority to establish ethical standards governing executive officials, but that authority is constrained by Article II when implementation or enforcement of those standards would interfere with presidential supervision, transfer executive power to Congress or an independent body, impair core presidential functions, or intrude upon constitutionally protected presidential information or immunity.

The distinction between **regulating executive conduct** and **controlling executive power** is therefore the most important principle.

Congress may determine:

What the law requires.

The President ordinarily determines:

How the Executive Branch executes that law.

The Judiciary determines:

What the law means and whether governmental action is constitutional.

Congress may investigate:

Whether existing law and administration warrant legislative action.

But Congress ordinarily may not itself decide:

How an executive official will execute the law in an individual case.

That last distinction is where many otherwise plausible ethics structures encounter Article II difficulties.

AH. Final Doctrinal Conclusions

The research supports the following conclusions with varying degrees of confidence.

Conclusion 1 — Congress has broad constitutional authority over executive ethics.

Confidence: High.

Article I, the Necessary and Proper Clause, the Appropriations Clause, and congressional authority over federal offices provide a substantial constitutional foundation for regulating executive conduct.

Conclusion 2 — Article II does not establish a general presidential exemption from ethics law.

Confidence: Moderate to high.

The Supreme Court has never established a categorical rule placing the President beyond generally applicable legal regulation.

But the President's unique constitutional status imposes important limits on how Congress may regulate and enforce ethics requirements.

Conclusion 3 — Congress cannot use ethics regulation to assume executive authority.

Confidence: Very high.

Bowsher and the Article II removal cases make the structural principle clear.

Congress may legislate and oversee; it may not execute.

Conclusion 4 — Presidential control is now the dominant structural principle governing executive officers.

Confidence: Very high.

Myers, *Free Enterprise Fund*, *Seila Law*, *Collins*, and especially *Trump v. Slaughter* establish a strong modern presumption that officers exercising executive power must remain subject to presidential control.

Conclusion 5 — The former *Humphrey's Executor* model is no longer available as a general basis for independent executive ethics enforcement.

Confidence: Very high.

The Supreme Court's 2026 decision expressly overruled *Humphrey's Executor* insofar as it permitted Congress to insulate executive officers exercising executive power from presidential removal.

Conclusion 6 — *Morrison* remains relevant but narrow.

Confidence: High.

The decision has not been formally overruled, but its rationale must now be understood alongside the Court's increasingly robust presidential-control doctrine.

Conclusion 7 — Executive privilege is a limitation on congressional ethics oversight, not an absolute barrier.

Confidence: High.

Nixon and *Mazars* establish that presidential confidentiality is constitutionally significant but must be evaluated against legitimate governmental interests.

Conclusion 8 — Presidential immunity creates a separate constitutional boundary.

Confidence: High.

Trump v. United States establishes significant immunity for official presidential acts in the criminal context, but it does not answer every question concerning statutory ethics regulation.

Conclusion 9 — The constitutional status of direct presidential ethics regulation remains unsettled.

Confidence: High.

There is insufficient Supreme Court precedent to state categorically that Congress may or may not impose every conceivable ethics requirement directly upon a sitting President.

The constitutionality depends heavily upon the regulated conduct and enforcement mechanism.

Conclusion 10 — The strongest constitutional foundation exists for generally applicable rules regulating personal financial and administrative conduct of subordinate executive officials.

Confidence: High.

The constitutional case becomes progressively more difficult as regulation moves from:

career employee → inferior officer → principal officer → Vice President → President

and as the regulation moves from:

personal conduct → administration → official executive discretion → core constitutional authority.